

FR 3840/22

**IN THE HIGH COURT OF KARNATAKA AT
BENGALURU**

W.P.No. 4317/2022

(Original Jurisdiction)

BETWEEN:

K. Annapurna

PETITIONER

AND:

The State of Karnataka,
The Chief Secretary,
And Another

RESPONDENTS

I N D E X

Sl. NO.	PARTICULARS	PAGE NOS.
1.	List of Dates and Events with Synopsis	1-3
2.	Writ Petition under Articles 226 And 227 of the Constitution of India	4-28
3.	Verifying Affidavit	14
4.	Annexure-A: The copy of the disability certificate of the Petitioner dated 10.02.2020	15
5.	Annexure-B: The copy of the Official Memorandum dated 04.05.2011	16-17
6.	Annexure-C: The copy of the certificate dated 22.08.2012	18
7.	Annexure-D: The copy of the representation dated 07.07.2021	19
8.	Annexure-E: The copy of the payslip for the month of August, 2021	20

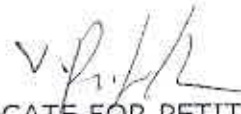
KANTHARAJA & ASSOCIATES
ADVOCATES

201, 2nd Floor, Golden Jubilee Block,
Kubara Sangha Building, Kanakadasa Circle,
1st Main, Gandhinagar, BANGALORE-560009.
Mpbile : 9964543939, 9448212462

9.	Annexure-F: The copy of the decision in case of Union of India and another v/s. National Federation for Blind and others in Civil Appeal No.9096/2013 dated 08.10.2013 (2013 (10) SCC 772)	21-68
10.	Annexure-G: The copy of the decision in case of Rajeev Kumar Gupta and others v/s Union of India and others in WP (Civil) No.521/2008 dated 30.06.2016 (2016(6) Scale 417)	69-83
11.	Annexure-H: The copy of the decision in case of Siddaraju v/s State of Karnataka and others in Civil Appeal No.1567/2017 decided on January, 14-1-2020	84-99
12.	Annexure-J: The copy of the decision of the Hon'ble Supreme Court in Civil Appeal No.59/2021 between the State of Kerala & others and Leesamma Joseph.	100-118
13.	Annexure-K: The copy of the OM No.36035/7/95 Est (SCT) issued by the Government of India's Department of Personnel and Training on 18.02.1997	119-120
14.	Annexure-L: The copy of the order dated 28.09.2021 passed in Application no.3141/201	122-137
15.	Annexure-M: The copy of the memorandum of Application no. 5991/2021.	138-147
16.	Annexure-N: The copy of the order dated 21.01.2022 in Application no. 5991/2021.	148-149
17.	Vakalathnama	150

PLACE: BENGALURU

DATE: 18-2-2022


ADVOCATE FOR PETITIONER

1

**IN THE HIGH COURT OF KARNATAKA AT
BENGALURU**

W.P.No...../2022

(Original Jurisdiction)

BETWEEN:

K. Annapurna

PETITIONER

AND:

The State of Karnataka,
The Chief Secretary,
And Another

RESPONDENTS

LIST OF DATES AND EVENTS

Sl.No.	Date	Event
1.	04.05.2011	The Petitioner was appointed as Junior Assistant through direct recruitment process under physically handicapped category reservation.
2.	07.07.2021	The Petitioner made a requisition seeking promotion from the date of her eligibility.

SYNOPSIS

The Petitioner is a B.Com. degree holder. The Petitioner is a 'Physically Disabled Person' with 80% (Eighty-percent) permanent Locomotory disability. The Petitioner was initially appointed as

2

Junior Assistant in the office of the Respondent no.2 on 04.05.2011 through direct recruitment process under physically handicapped category reservation vide official memorandum dated 04.05.2011. The Petitioner was declared to have satisfactorily completed the probationary period.

The Petitioner is presently working as Assistant in the office of the respondent no.2. The Petitioner has completed 10 years of service in the respondent no.2 department.

The Petitioner was appointed about 10 years ago and once she was promoted in 2015 from the Junior Assistant to Assistant. As per the provisions of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016) and the rulings of the Hon'ble Supreme Court, 3% reservation is to be provided for the persons with disabilities in promotions. In view of the said law, the Petitioner being a Specially Disabled Person who was appointed in 2011, is entitled for promotion retrospectively from the date of her eligibility under quota of reservation for specially abled persons. The Petitioner has made several requests seeking promotion from the date of her eligibility, however the same has not been considered till date. The Petitioner has served throughout blemishlessly. Non-consideration of the case of the Petitioner for promotion retrospectively under reservation quota from the date of eligibility has seriously affected the legal rights of the Petitioner. Hence, the Petitioner has preferred this Writ petition.

3)

Hence, being aggrieved by the non-consideration of her case for promotion to the post of Senior Assistant in the Department of respondent no.2 and all consequential promotions retrospectively from the date of her eligibility along with all consequential benefits arising therefrom, the petitioner has approached this Hon'ble Court by way of this Writ Petition.

PLACE: BENGALURU

DATE: 18-2-2022


ADVOCATE FOR PETITIONER

(4)

**IN THE HIGH COURT OF KARNATAKA AT
BENGALURU**

W.P.No. 4317/2022

(Original Jurisdiction)

BETWEEN:

K. Annapurna,
D/o. Late H. N. Krishnamurthy,
Aged about 42 years,
Residing at No.13/171,
5th Cross,
17th Main Road,
F.F.Layout, Laggere,
Bengaluru-560058.

PETITIONER

AND:

1. The State of Karnataka,
Represented The Chief Secretary,
Vidhana Soudha,
Dr. Ambedkar's Veedhi,
Bengaluru-560001,
2. State of Karnataka
Represented by its Secretary,
Karnataka Legislative Assembly Secretariat,
Vidhana Soudha,
Bengaluru-560001.

RESPONDENTS

**MEMORANDUM OF WRIT PETITION UNDER
ARTICLE 226 AND 227 OF THE CONSTITUTION
OF INDIA**

The petitioner most respectfully submits as follows;



5

1. The Petitioner is a B.Com. degree holder. The Petitioner is a 'Physically Disabled Person' with 80% (Eighty-percent) permanent Locomotory disability. The copy of the disability certificate of the Petitioner dated 10.02.2020 is herewith produced as **Annexure-A**. The Petitioner was initially appointed as Junior Assistant in the office the Respondent no.2 on 04.05.2011 through direct recruitment process under physically handicapped category reservation vide official memorandum dated 04.05.2011. The Petitioner was declared to have satisfactorily completed the probationary period. The copy of the said Official Memorandum dated 04.05.2011 is herewith produced as **Annexure-B**. The Petitioner was declared to have satisfactorily completed the probationary period in the year 2012. The Petitioner has also passed departmental examination. The copy of the certificate dated 22.08.2012 in that regard is herewith produced as **Annexure-C**.
2. The Petitioner is presently working as the Assistant in the office of the respondent no.2. The Petitioner has completed 10 years of service in the respondent no.2 department.
3. The Petitioner was appointed about 10 years ago and once she was promoted in 2015 from the Junior Assistant to Assistant. As per the provisions of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016) and the rulings of the Hon'ble Supreme Court, 3% reservation is to be provided for the persons with disabilities in promotions.

3

In view of the said law, the Petitioner being a Specially Disabled Person who was appointed in 2011, is entitled for promotion retrospectively from the date of her eligibility under quota of reservation for specially abled persons. The Petitioner has made a request to the respondent no.2 seeking promotion from the date of her eligibility, however the same has not been considered till date. The copy of the said representation dated 07.07.2021 is herewith produced as **Annexure-D.**

4. The Petitioner has served throughout blemishlessly. Non-consideration of the case of the Petitioner for promotion retrospectively under reservation quota from the date of eligibility has seriously affected the legal rights of the Petitioner.
5. Considering the disability of the Petitioner, she has been sanctioned with special allowances as could be seen from payslip for the month of August, 2021. The copy of the payslip for the month of August, 2021 is herewith produced as **Annexure-E.**
6. The request of the Petitioner for retrospective promotion is based on the decisions of the Hon'ble Supreme Court in the cases of Union of India and another v/s National Federation for Blind and others in Civil Appeal No.9096/2013 dated 08.10.2013 (2013 (10) SCC 772), Rajeev Kumar Gupta and others v/s Union of India and others in WP (Civil)

v. p. d. /

7

No.521/2008 dated 30.06.2016 (2016 (6) Scale 417) and Siddaraju v/s State of Karnataka and others in Civil Appeal No.1567/2017 decided on 14-1-2020 and State of Kerala & others and Leesamma Joseph in Civil Appeal No.59/2021. The said decisions of the Hon'ble Supreme Court are herewith produced as **Annexures- F, G, H and J** respectively. In fact, the Government of India has provided reservation for 'Specially Abled Persons' in the posts held by promotion as could be seen from OM No.36035/7/95 Est (SCT) issued by the Government of India's Department of Personnel and Training on 18.02.1997 which is herewith produced as **Annexure-K**. Despite the same, the Respondents are not providing reservation quota for Employees of 'Specially Abled Persons' and consequently to the Petitioner with all consequential benefits retrospectively as on the date of eligibility.

7. In an identical case, in Application no.3141/201 Gururaj Allagi Vs State of Karnataka and others, the Karnataka State Administrative Tribunal vide its order dated 28.09.2021 has held that the Specially abled persons are entitled for reservation in promotion and their disability should not come in the way of promotion and therefore, promotion is to be given to the Petitioner from the date of his eligibility within a period of 3 months if he is otherwise eligible with due regard to his seniority in the cadre and the Petitioner shall not be discriminated solely based on his disability status. The copy of the said order dated 28.09.2021 is herewith produced

V. J. / L

8

Annexure-L. The Petitioner being similarly placed, is also entitled for reliefs granted in the aforesaid matter.

8. The Petitioner has served throughout blemishlessly. Non-consideration of the case of the Petitioner for promotion to the post of Senior Assistant in the Department of respondent no.2 and all consequential promotions retrospectively from the date of her eligibility along with all consequential benefits arising therefrom has seriously affected the legal rights of the Petitioner.
9. It is submitted that earlier, the petitioner had filed an Application no. 5991/2021 before the Karnataka State Administrative Tribunal at Bengaluru seeking to give promotion to the Petitioner to the post of Senior Assistant in the department of the respondent no.2 and all consequential promotions retrospectively from the date of her eligibility along with all consequential service benefits arising therefrom by providing 3% reservation quota to the 'Specially Abled Persons' in promotion as per the provisions of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016) and the law laid down by the Hon'ble Supreme Court among other reliefs. However, it was observed that the case of the petitioner was not maintainable before the Karnataka State Administrative Tribunal as the petitioner belongs to Karnataka Legislative Assembly Secretariat, the petitioner sought the leave of the Tribunal to withdraw the said Application no. 5991/2021 and she was permitted to withdraw the same with a liberty to approach

Refused

9

the appropriate forum. The copy of the memorandum of application filed in Application no. 5991/2021 and the order dated 21.01.2022 passed by the Karnataka State Administrative Tribunal permitting the petitioner to withdraw the Application no. 5991/2021 are herewith produced as **Annexures-M** and **N** respectively.

10. Hence, being aggrieved by the non-consideration of her case for promotion to the post of Senior Assistant in the Department of respondent no.2 and all consequential promotions retrospectively from the date of her eligibility along with all consequential benefits arising therefrom, the petitioner has approached this Hon'ble Court by way of this Writ Petition having no other alternative and efficacious remedy on the grounds mentioned hereunder.
11. The petitioner has not filed any other writ petition on the subject matter of this writ petition.

GROUND

12. The impugned action of the respondent in not providing 3% reservation to the persons with disabilities including the Petitioner is illegal, arbitrary and unjust.
13. That the Petitioner has been working in the Department of respondent no.2 for over a period of 10 years. The Petitioner is entitled for reservation under the quota for persons with

[Handwritten signature]

(10)

disabilities under reservation quota as per the mandate of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016). Despite the same the Petitioner has not been considered as the eligible candidate for the purpose of reservation under the employees of 'Specially Abled Persons' quota for Promotion retrospectively from the date of his eligibility.

14. That if the Petitioner's case is not considered for promotion under reservation quota for persons with disabilities, she will be denied the Constitutional Provisions provided to her regarding promotion.

15. That the Constitution is not merely guarantee "formal equality" but also substantive equality. Same formality would mean that the society would simply reflects its extant hierarchy and order in the distribution of rewards and would oblige the State only responsible for treating of equal persons in the same manner, based on the objective standards. However, it is the model of substantive equality that the Indian Constitution has espoused under Article 14, has passed a formal equality. This implies that only equals must be treated as equal and un-equals must be treated as equals, which makes it the constitutional responsibility of the State to ensure the systematic and historic conditions of the disability classes of persons are taken into account in providing equal status and equal opportunities.

V.P. [1]C

(11)

16. Thus, looking to the decisions of the Hon'ble Supreme Court referred to supra, it is very clear that the denial of 3% reservation to the persons with disabilities is in direct violation of the fundamental right enunciated under Article 14 of the Indian Constitution and statutory provisions of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016). Therefore, the Hon'ble Supreme Court rightly held that the 'Specially Abled Persons' are entitled for promotion both as per the mandate of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016) which has replaced the earlier enactment namely the Persons with Disabilities (Equal opportunity Protection of rights and full participation) Act, 1995 (Act no.1 of 1996) and also ideals of the Indian Constitution.

17. Not providing separate quota reservation in promotion to the employees with disabilities is not only in violation of the provisions of the said Act under Section 20, 33 and 34 but also Articles 14 and 16 of the Indian Constitution.

18. Thus, looking at any angle, the Respondents have committed serious error of law in not providing 3% reservation to the persons with disabilities including the Petitioner despite the written and oral demands for the same. Hence, the Petitioner has resorted to this Application and appropriate direction be issued to the Respondents for providing 3% reservation in promotion to the persons with disabilities including the Petitioner.

Vijay L

12

GROUND FOR INTERIM PRAYER

That the Petitioner is eligible for promotion to the post of Senior Assistant in the Department of respondent no.2 and all consequential promotions retrospectively from the date of her eligibility along with all consequential benefits arising therefrom. The Petitioner is entitled for reservation for the persons with disabilities as per the provisions of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016), Articles 14 and 16 of the Constitution and the law laid down by the Hon'ble Supreme Court in the decisions cited above. The Petitioner has already served for 10 years with unblemished record of service. Hence, it is just and necessary to grant interim order as sought for by the Petitioner herein below. Hence, the interim order as prayed for hereunder is just and necessary.

PRAYER

Wherefore the Petitioner most respectfully prays that this Hon'ble Court may be pleased to;

- a) Direct the Respondents to give promotion to the Petitioner to the post of Senior Assistant in the department of the respondent no.2 and all consequential promotions retrospectively from the date of her eligibility along with all consequential service benefits arising therefrom by providing 3% reservation quota to the 'Specially Abled Persons' in promotion as per the provisions of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016) and the law



13

laid down by the Hon'ble Supreme Court by issuing a Writ of Mandamus.

- b) Issue such other writ, order or direction as this Hon'ble Court deems fit to grant in the circumstances of the case including costs, in the interest of justice and equity.

INTERIM PRAYER

Pending the disposal of this writ petition, the Petitioner prays that this Hon'ble Court may be pleased to direct the respondent to give promotion to the Petitioner to the post of Senior Assistant in the Department of the respondent no.2 and all consequential promotions retrospectively from the date of her eligibility along with all consequential benefits arising therefrom from the date of her eligibility in the interest of justice and equity.

Address for service:-

Ravi H.K.,
Shruti Phonde, Advocates
Kantharaja & Associates,
No.201, 2nd Floor,
Kurubara Sangha Building,
Golden Jubilee Block,
1st Main, Gandhinagar,
Bengaluru-560009.

Place: Bengaluru
Date: - 18-2-2022

Vfn-1/1/1/1
Advocate for Petitioner

14

**IN THE HIGH COURT OF KARNATAKA AT
BENGALURU**

W.P.No...../2022

(Original Jurisdiction)

BETWEEN:

K. Annapurna

PETITIONER

AND:

The State of Karnataka,
The Chief Secretary,
And Another

RESPONDENTS

VERIFYING AFFIDAVIT

I, K. Annapurna, D/o. Late H. N. Krishnamurthy, Aged about 42 years, presently working as Assistant (Group-C), Karnataka Legislative Assembly Secretariat, Vidhana Soudha, Bengaluru-560001, residing at No.13/171, 5th Cross, 17th Main Road, F.F.Layout, Laggere, Bengaluru-560058 do hereby solemnly affirm and state as follows:

1. I am the petitioner in the above case and I am well aware of facts of the case and hence I am swearing to this affidavit.
2. I state that the statements made in paragraphs 1 to 16 of the petition accompanying this affidavit are true and correct to the best of my knowledge, information and behalf.

K. Annapurna



(15)



Department of Empowerment of Persons with Disabilities,
Ministry of Social Justice and Empowerment, Government of India

ANNEXURE

-A

Disability Certificate

Issuing Medical Authority, Bengaluru Urban, Karnataka



Certificate No.: KA1890619780048279

Date: 10/02/2020

This is to certify that I/We have carefully examined Kum. **Annapurna** Daughter of Shri **Late H N Krishnamurthy** Date of Birth **02/10/1978** Age **41 Year(s)** Female, Registration No. **2918/00000/1911/0908913** resident of House No. **F.f.layout, Laggere, 17th Main Road - 560058** Sub District **Bangalore North** District **Bengaluru Urban** State / **UTs Karnataka**

Whose photograph is affixed above, and I/We satisfied that:

(A) She is a case of Locomotor Disability

(B) The diagnosis in her case is **POST POLIO RESIDUAL QUADRIPARESIS**

(C) She has **80%**(in figure) **Eighty** percent(in words) Permanent in relation to her (part of body) as per guidelines (to be specified).

The applicant have been submitted the following document(s) as proof of residence

Nature of Document(s): Aadhaar card



Signature / Thumb impression of the Person With Disability

[Signature]

Signatory of notified Medical Authority Member



Issuing Medical Authority, Bengaluru Urban, Karnataka

This Card/Certificate is meant to certify the disability of the person and is not an instrument for ID/Address Proof for any purpose.

[Signature]

**ಕರ್ನಾಟಕ ವಿಧಾನಸಭೆ
KARNATAKA LEGISLATIVE ASSEMBLY**

ವಿಧಾನಸಭೆಯ ಸಚಿವಾಲಯ
ಅಂಚೆ ಪೆಟ್ಟಿಗೆ ಸಂ.5074, ವಿಧಾನಸೌಧ,
ಬೆಂಗಳೂರು-560 001

LEGISLATIVE ASSEMBLY SECRETARIAT
P.B.No.5074, Vidhana Soudha
Bangalore-560 233

ಕಮ ಸಂಖ್ಯೆ:ಕಪಿಸಸ/ಆ-1/50/ಕಿಸಹುಭ/2011
No/LAS.....

ದಿನಾಂಕ/Dated:04.05.2011

ಅಧಿಕೃತ ಜ್ಞಾಪನ ಪತ್ರ

ವಿಷಯ: ವಿಧಾನಸಭೆ ಸಚಿವಾಲಯದಲ್ಲಿ ಕಿರಿಯ ಸಹಾಯಕರ ಹುದ್ದೆಯನ್ನು ನೇರ
ನೇಮಕಾತಿ ಮೂಲಕ ಭರ್ತಿ ಮಾಡುವ ಬಗ್ಗೆ.

ಉಲ್ಲೇಖ: ಅಧಿಸೂಚನೆ ಸಂಖ್ಯೆ: ಕಪಿಸಸ/ಆ-1/73/ವಿಹುನೇನೇಭ/2010,
ದಿನಾಂಕ:13.10.2010

2003ನೇ ಇಸವಿಯ ಕರ್ನಾಟಕ ವಿಧಾನಸಭೆ ಸಚಿವಾಲಯದ (ನೇಮಕಾತಿ ಹಾಗೂ ಸೇವಾ ಷರತ್ತುಗಳು)
ನಿಯಮಾವಳಿಗಳ ನಿಯಮ 6(ii)ರ ಪ್ರಕಾರ ಈ ಕೆಳಕಂಡ ಅಭ್ಯರ್ಥಿಗಳನ್ನು ತಕ್ಷಣದಿಂದ ಜಾರಿಗೆ ಬರುವಂತೆ
ವೇತನ ಶ್ರೇಣಿ ರೂ. 5800-100-6000-125-6500-150-7100-175-7800-200-8600-225-9500-250-
10500 ರಲ್ಲಿ ಕಿರಿಯ ಸಹಾಯಕ ಹುದ್ದೆಗೆ ನೇಮಕಾತಿ ಮಾಡಲಾಗಿದೆ.

1. ಶ್ರೀ ಇಂದುಧರ್ ಎಂ.ಹೆಚ್.
2. ಶ್ರೀ ಮೋರೇಗೌಡ ಜೆ.ಎಸ್.
3. ಶ್ರೀಮತಿ ಅನ್ನಪೂರ್ಣ ಕೆ.
4. ಶ್ರೀಮತಿ ಭಾಗ್ಯಲಕ್ಷ್ಮಿ ಆರ್.

ಸದರಿ ಅಭ್ಯರ್ಥಿಗಳು ಈ ಕೆಳಕಂಡ ನಿಬಂಧನೆಗಳಿಗೆ ಬದ್ಧರಾಗಿರುತ್ತಾರೆ.

1. ಅಭ್ಯರ್ಥಿಗಳು ಈ ಆದೇಶ ಹೊರಡಿಸಿದ ದಿನಾಂಕದಿಂದ ಅನ್ವಯಗೊಳ್ಳುವಂತೆ 15 (ಹದಿನೈದು)
ದಿನಗಳೊಳಗೆ ಸೇವೆಗೆ ಹಾಜರಾಗತಕ್ಕದ್ದು. ತಪ್ಪಿದಲ್ಲಿ ಅವರು ನೇಮಕಾತಿಗೆ ಅನರ್ಹರೆಂದು
ಪರಿಗಣಿಸಲಾಗುವುದು.
2. ಅಭ್ಯರ್ಥಿಗಳು ನೇಮಕಾತಿಗೆ ಸಂಬಂಧಿಸಿದ ಎಲ್ಲಾ ಮೂಲ ದಾಖಲೆಗಳನ್ನು ಹಾಜರುಪಡಿಸತಕ್ಕದ್ದು.
ಸದರಿ ದಾಖಲೆಗಳು ಸಂಬಂಧಪಟ್ಟ ಅಧಿಕಾರಿಗಳಿಂದ ಪರಿಶೀಲನೆಯ ನಿಬಂಧನೆಗೆ ಒಳಪಟ್ಟಿರುತ್ತದೆ.
3. ಅಭ್ಯರ್ಥಿಗಳು ಶಾರೀರಕ ಸುಸ್ಥಿತಿ ಪ್ರಮಾಣ ಪತ್ರವನ್ನು ವೈದ್ಯಾಧಿಕಾರಿ(ಸಹಾಯಕ ಶಸ್ತ್ರ ಚಿಕಿತ್ಸಕರಿಗಿಂತ
ಕಡಿಮೆ ದರ್ಜೆಯಲ್ಲದ) ಯವರಿಂದ ಪಡೆದು ಹಾಜರುಪಡಿಸತಕ್ಕದ್ದು.

4. ಅಭ್ಯರ್ಥಿಗಳು ಸೇವೆಗೆ ಹಾಜರಾದ ದಿನಾಂಕದಿಂದ ಎರಡು ವರ್ಷಗಳ ಕಾಲ (ಖಾಯಂ ಪೂರ್ವ ಸೇವಾವಧಿಯಲ್ಲಿ (ಪ್ರೊಬೇಷನ್) ಇರುತ್ತಾರೆ.
5. ಅಭ್ಯರ್ಥಿಗಳು ಭಾರತ ಹಾಗೂ ಭಾರತದ ಸಂವಿಧಾನಕ್ಕೆ ನಿಷ್ಠೆಯಿಂದ ಇರುವೆನೆಂದು ಪ್ರಮಾಣ ಪತ್ರ ಸ್ವೀಕರಿಸಬೇಕಾಗುತ್ತದೆ.
6. ಮೇಲ್ಕಾಣಿಸಿದ ಷರತ್ತುಗಳಲ್ಲದೆ ಸೇವಾ ನಿಯಮಗಳ ಬಗ್ಗೆ ಸರ್ಕಾರಿ ನೌಕರರಿಗೆ ಕಾಲ ಕಾಲಕ್ಕೆ ಅನ್ವಯಿಸುವ ನಿಯಮ, ವಿನಿಯಮ (ರೆಗ್ಯುಲೇಷನ್) ಹಾಗೂ ಆದೇಶಗಳಿಗೆ ಬದ್ಧರಾಗಿರತಕ್ಕದ್ದು.
7. ಅಭ್ಯರ್ಥಿಗಳು ಕೆಲಸಕ್ಕೆ ಸೇರಲು ಬರುವಾಗ ಪ್ರಯಾಣ ಭತ್ಯೆ ಮತ್ತು ಇತರೆ ಯಾವುದೇ ಭತ್ಯೆಗಳಿಗೆ ಅರ್ಹರಾಗಿರುವುದಿಲ್ಲ.

ಸಭಾಧ್ಯಕ್ಷರ ಆದೇಶಾನುಸಾರ

|| 17-2 ||

(ಎಂ.ಕೆ.ವಿಶಾಲಾಕ್ಷಿ)

ಅಧೀನ ಕಾರ್ಯದರ್ಶಿ.

ಕರ್ನಾಟಕ ವಿಧಾನ ಸಭೆ ಸಚಿವಾಲಯ.

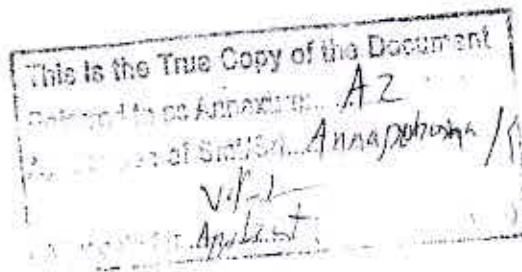
ಗೆ,

1. ಶ್ರೀ ಇಂದುಧರ್ ಎಂ.ಹೆಚ್, ಮಂದೋಡಿ ಮನೆ, ಕರಿಕೆ ಗ್ರಾಮ ಮತ್ತು ಅಂಚೆ, ಮಡಿಕೇರಿ, ಕೊಡಗು ಜಿಲ್ಲೆ.
2. ಶ್ರೀ ಗೋವಿಂದ, ದಿ.ನೋಸಪಳ್ಳಿ, ಮಂಗಳೂರು-571-15, ಮಂಡ್ಯ ಜಿಲ್ಲೆ.
3. ಶ್ರೀಮತಿ ಅನ್ನಪೂರ್ಣ ಕೆ., ಸಂಖ್ಯೆ 13, 5ನೇ ಕ್ರಾಸ್, 17ನೇ ಮೇನ್, ಎಫ್.ಎಫ್.ರೋಡ್, ಅಗ್ಗರೆ, ಬೆಂಗಳೂರು-58.
4. ಶ್ರೀಮತಿ ಭಾಗ್ಯಲಕ್ಷ್ಮಿ ಆರ್., ನಂ.50, ವೇಲ್ ಮುರುಗಪುರಂ, 3ನೇ ಅಡ್ಡರಸ್ತೆ, ದಾ.ಬಿ.ಸಿ.ಎಂ.ರಾಯನ್ ರಸ್ತೆ, ಬೆಂಗಳೂರು-53.

ಪ್ರತಿಗಳು:-

1. ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿ, ಕರ್ನಾಟಕ ವಿಧಾನಮಂಡಲ.
2. ಕಾರ್ಯದರ್ಶಿ, ಕವಿಸಸ.
3. ಕಾರ್ಯದರ್ಶಿ-2, ಕವಿಸಸ.
4. ಅಪರ ಕಾರ್ಯದರ್ಶಿ ಹಾಗೂ ಮಾನ್ಯ ವಿಧಾನಸಭಾಧ್ಯಕ್ಷರ ಕಾರ್ಯದರ್ಶಿ, ಕವಿಸಸ.
5. ಜಂಟಿ ಕಾರ್ಯದರ್ಶಿಗಳು, ಕವಿಸಸ.
6. ಮಹಾಲೇಖಪಾಲರು(ಲೆಕ್ಕಪತ್ರ), ಕರ್ನಾಟಕ, ಬೆಂಗಳೂರು.
7. ಮಾನ್ಯ ಸಭಾಧ್ಯಕ್ಷರ ಆಪ್ತ ಕಾರ್ಯದರ್ಶಿ, ಕವಿಸಸ.
8. ಅಧೀನ ಕಾರ್ಯದರ್ಶಿ, ಲೆಕ್ಕಪತ್ರ, ಕವಿಸಸ.
9. ಜಂಟಿ ನಿರ್ದೇಶಕರು, ರಾಜ್ಯ ಹುಜೂರ್ ಖಜಾನೆ, ಬೆಂಗಳೂರು.
10. ಶಾಖಾಧಿಕಾರಿ, ಲೆಕ್ಕಪತ್ರ ಶಾಖೆ-II, ಆಡಳಿತ ಶಾಖೆ-II, ಕಾರ್ಯಕಾರಿ ಶಾಖೆ, ಕವಿಸಸ.
11. ಸಂಬಂಧಪಟ್ಟ ಕಡತಕ್ಕೆ.
12. ರಕ್ಷಾ ಕಡತಕ್ಕೆ.
13. ಬಿಡಿ ಪ್ರತಿಗಳು.

Handwritten signature



19

ANNEXURE -

ಪ್ರಮಾಣ ಪತ್ರ ಸಂಖ್ಯೆ : AA 10966

ಕರ್ನಾಟಕ ಲೋಕಸೇವಾ ಆಯೋಗ

ಬೆಂಗಳೂರು



ಪ್ರಮಾಣ ಪತ್ರ
Certificate



ಹೆಸರು ಮತ್ತು ಕಛೇರಿಯ ವಿಳಾಸ :
K ANNAPURNA
junior assistant
karnataka legislative assembly post box no 5074
vidhansoudha
bangalore-560001

ಶ್ರೀ/ಶ್ರೀಮತಿ K ANNAPURNA

ಅವರು 2012 ನೇ ಸಾಲಿನ

FIRST ಅಧಿವೇಶನದ ಇಲಾಖಾ ಪರೀಕ್ಷೆಯಲ್ಲಿ BANGALORE

ಪರೀಕ್ಷಾ ಕೇಂದ್ರದ ನೋಂದಣಿ

ಸಂಖ್ಯೆ 12157 ರಡಿ ಈ ಕೆಳಗೆ ಸೂಚಿಸಿರುವ One

ವಿಷಯದಲ್ಲಿ / ವಿಷಯಗಳಲ್ಲಿ

ಉತ್ತೀರ್ಣರಾಗಿರುತ್ತಾರೆಂದು ಪ್ರಮಾಣೀಕರಿಸಿದೆ.

ಕ್ರಮ ಸಂಖ್ಯೆ	ವಿಷಯ	ಶ್ರೇಣಿ	ಪರೀಕ್ಷೆ ನಡೆದ ದಿನಾಂಕ
-------------	------	--------	---------------------

1	ACCOUNTS HIGHER	PASS	17/06/12
---	-----------------	------	----------

***** End *****

✓
true copy

This is the True Copy of the Document
certified to be correct
by the Officer of the Department
J. J. L.
Assistant Secretary

Shanmug
ಶಾಖಾಧಿಕಾರಿ
ಇಲಾಖಾ ಪರೀಕ್ಷೆಗಳು
ದಿನಾಂಕ : 22/08/12

ಆಯ್ಕೆ
ಕಾರ್ಯದರ್ಶಿ ಮತ್ತು ನಿರ್ಮಾಣಾಧಿಕಾರಿ
ಇಲಾಖಾ ಪರೀಕ್ಷೆಗಳು

19

ANNEXURE-01

ಕಾರ್ಯದರ್ಶಿರವರು,
ಕರ್ನಾಟಕ ವಿಧಾನಸಭೆ ಸಚಿವಾಲಯ,
ಬೆಂಗಳೂರು.

ಇಂದ,
ಕೆ. ಅನ್ನಪೂರ್ಣ
ಸಹಾಯಕಿ, ಜಿ.ಎಂ.ಸಿ. ಸಮಿತಿ,
ಕರ್ನಾಟಕ ವಿಧಾನಸಭೆ ಸಚಿವಾಲಯ,
ಬೆಂಗಳೂರು.

- ವಿಷಯ: ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶ ಹಾಗೂ ಅಂಗವಿಕಲ ವ್ಯಕ್ತಿಗಳ ಹಕ್ಕುಗಳ
ಅಧಿನಿಯಮ 2016ರ ಅನ್ವಯ ಮುಂಬಡ್ತಿಯಲ್ಲಿ ಮೀಸಲಾತಿ ಕಲ್ಪಿಸುವ ಕುರಿತಾಗಿ ಮನವಿ.
ಉಲ್ಲೇಖ: 1) ಅಂಗವಿಕಲ ವ್ಯಕ್ತಿಗಳ ಹಕ್ಕುಗಳ ಅಧಿನಿಯಮ 2016.
2) ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶ ಸಂಖ್ಯೆ: CIVIL APPEAL
NO.1567 OF 2017 SIDDARAJU V/S STATE OF
KARNATAKA & OTHERS
3) CIVIL APPEAL NO.59 OF 2021, THE STATE OF KERALA &
ORS V/S LEESAMMA JOSEPH

ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ, ನಾನು ಕರ್ನಾಟಕ ವಿಧಾನಸಭೆ ಸಚಿವಾಲಯದಲ್ಲಿ
ಸಹಾಯಕಿಯಾಗಿ ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುತ್ತೇನೆ ಹಾಗೂ ನೇಮಕಾತಿ ಆದಾಗ ವಿಶೇಷಜೇತನರ ಕೋಟಾದಡಿ
ಕೆರಿಯ ಸಹಾಯಕಿಯಾಗಿ ನೇಮಕಾತಿ ಹೊಂದಿರುತ್ತೇನೆ. ನಮ್ಮ ಸಚಿವಾಲಯವು ಸ್ವಾಯತ್ತ ಸಂಸ್ಥೆಯಾಗಿರುವ
ಕಾರಣ ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದ ಉಲ್ಲೇಖಿತ ಆದೇಶದ ಪ್ರಕಾರ ಮುಂದಿನ ಬಾರಿ ಮುಂಬಡ್ತಿ
ನೀಡುವಾಗ ವಿಶೇಷಜೇತನರ ಕೋಟಾದಡಿ ನನ್ನನ್ನು ಸಂಗಣಿಸಬೇಕಾಗಿ ಈ ಮೂಲಕ ಕೋರುತ್ತೇನೆ.

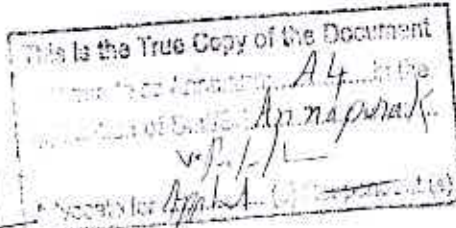
ವಂದನೆಗಳೊಂದಿಗೆ,

ತಮ್ಮ ವಿಶ್ವಾಸಿ,

(ಕೆ. ಅನ್ನಪೂರ್ಣ)

ಸಹಾಯಕಿ, ಜಿ.ಎಂ.ಸಿ. ಸಮಿತಿ,

ಕರ್ನಾಟಕ ವಿಧಾನಸಭೆ ಸಚಿವಾಲಯ.



True Copy



AG Code :

Head Of Account: 2011-02-103-1-01
PAN Number: AVAPAO049E
EL. BAL.: 192
HPL. BAL.: 22

Deductions:	
Gifts	240
KGID	7060
NPS	4168

This is the True Copy of the Document
Total Recoveries : 1700 | Of 0
KARNATAKAG
OVERDUENT
Recoveries : 1700 | Of 0

RS.	1700
RS	39497

FOURTH PRECEDENCE ONLY

ATND 95-

(21)

ANNEXURE - "F"

REPORTABLE

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

CIVIL APPEAL NO.9096 OF 2013
(Arising out of SLP (Civil) No. 7541 of 2009)

Union of India & Anr.

.... Appellant(s)

Versus

National Federation of
the Blind & Ors.

.... Respondent(s)

J U D G M E N T

P. Sathasivam, CJI.

- 1) Leave granted.
- 2) This appeal is directed against the final judgment and order dated 19.12.2008 passed by the High Court of Delhi at New Delhi in Writ Petition (C) No. 15828 of 2006 wherein the High Court interpreted Section 33 of the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 (in short 'the Act') and issued various directions to be complied with by the appellants herein.

22

3) **Brief facts:**

(a) National Federation of the Blind-Respondent No. 1 herein is an apex organization and a society registered under the Societies Registration Act, 1860, having its Head Office at New Delhi and is working for the protection of the rights of the visually challenged.

(b) In the year 2006, Respondent No. 1 herein filed a writ petition before the High Court in public interest seeking implementation of Section 33 of the Act alleging that the appellants herein have failed to provide reservation to the blind and low vision persons and they are virtually excluded from the process of recruitment to the Government posts as stipulated under the said Act.

(c) In the above backdrop, it is relevant to mention that way back in 1977, the erstwhile Ministry of Social Welfare, Government of India, made reservation in favour of the following three categories of disabled persons in Group C & D posts to the extent of 1 per cent each for the (i) Blind; (ii) Hearing and Speech Impairment; and (iii) persons suffering from locomotor disability. In the year 1986, the Department of Personnel & Training (DoPT), directed all the departments to take into account both identified

23

and unidentified posts for working out the total number of vacancies to be reserved for each of the disabled categories. In spite of the above said executive order, various government departments and public sector undertakings did not give effect to the scheme of reservation which compelled Respondent No. 1 herein to organize a nation wide agitation, as a result of which, an agreement was arrived at between the parties on 27.08.1987 to undertake a Special Recruitment Drive for clearing up the backlog of vacancies.

(d) On 07.02.1996, the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 was brought into force making reservation of at least 3 percent posts in all government establishments to the extent of 1 per cent each for the persons suffering from (i) blindness or low vision; (ii) hearing impairment; and (iii) locomotor disability or cerebral palsy. After enactment of the said Act, Union of India issued various orders for ensuring proper implementation of the provisions of the Act for the persons with disabilities.

(e) Respondent No. 1 herein, by filing the above said petition before the High Court asserted that despite statutory provisions

○ 24

and various executive orders, discrimination against the persons with disabilities continued in filling up the vacancies in various government departments whereas it was contended by the other side that the Office Memorandum (OM) dated 29.12.2005, issued by the Department of Personnel & Training, *inter alia* provides a system for ensuring proper implementation of the provisions of the Act for the persons with disabilities.

(f) Vide order dated 19.12.2008, the High Court disposed of the petition directing the Union of India to modify the OM dated 29.12.2005 being inconsistent with the provisions of Section 33 of the Act and issued several other directions.

(g) Being aggrieved of the above, the appellants have preferred this appeal by way of special leave before this Court.

(h) Tamil Nadu Handicapped Federation Charitable Trust, Smt S. Rajeswari and Association for Physically Challenged People Ordnance Clothing Factory filed applications for impleadment. Vide order dated 22.07.2011, this Court did not allow them to implead but to act as intervenors in the proceedings.

4) Heard Ms. Indra Jaisingh, learned Additional Solicitor General for the Union of India, Mr. S.K. Rungta, learned senior counsel (R-

25

1) appearing in person and Mr. R. Prabhakaran, learned counsel for Intervenor.

Submissions:

5) Ms. Indra Jaisingh, learned Additional Solicitor General for the Union of India, after taking us through various provisions of the Act and OM(s) issued by the Government of India submitted that the impugned judgment of the High Court is against the provisions of the Act. She further pointed out that the finding of the High Court that in terms of Section 33 of the Act, 3% reservation for the disabled persons has to be computed on the basis of total strength of the cadre, i.e., both identified as well as unidentified posts is erroneous. In any event, according to her, the direction of the High Court to work out backlog vacancies for the disabled persons on the total cadre strength in different establishments within one month from the date of the order is impractical and not executable. It is further highlighted that according to Section 33 of the Act, reservation to the persons with disabilities in an establishment shall be 3% of the vacancies arising in the posts which are identified for the persons with disabilities. The High Court, by the impugned judgment, disturbed the very basic

~~28~~ (26)

system of the reservation of posts for the persons with disabilities. She further highlighted that the reservation for Group C and D posts is being calculated on the basis of the vacancies in identified as well as unidentified posts prior to the Act came into existence and in view of the provisions of Section 72 of the Act, continued in the same way, however, reservation for Group A and B posts is being calculated on the basis of the vacancies for identified posts as per the provisions of the Act.

6) On the other hand, Mr. S.K. Rungta, learned senior counsel (R-1) appearing in person submitted that in terms of the provisions of the Act, more particularly, Sections 32 and 33 of the Act, it is obligatory on the part of the Government establishments to provide at least 3% reservation of posts in the total cadre strength and not in the identified vacancies. He further pointed out that though the Act was passed in 1995 since then the provisions have not been strictly implemented. He prayed for further time bound direction for implementation of the same.

7) Mr. R. Prabhakaran, learned counsel for intervenors reiterated the submissions made by Mr. S.K. Rungta.

39

27

8) We have perused all the relevant materials and considered the rival submissions.

Relevant Provisions:

9) In order to answer the rival contentions, it is desirable to quote the relevant provision of the Act. Sections 2(a), 2(i), 2(j) and 2(k) of the Act read as under:

"2(a) "appropriate Government" means,-

- (i) in relation to the Central Government or any establishment wholly or substantially financed by that Government, or a Cantonment Board constituted under the Cantonment Act, 1924 (2 of 1924), the Central Government;
- (ii) in relation to a State Government or any establishment wholly or substantially financed by that Government or any local authority, other than a Cantonment Board, the State Government;
- (iii) in respect of the Central Co-ordination Committee and the Central Executive Committee, the Central Government;
- (iv) in respect of the State Co-ordination Committee and the State Executive Committee, the State Government;

2(i) "Disability" means-

- (i) blindness;
- (ii) low vision;
- (iii) leprosy-cured;
- (iv) hearing impairment;
- (v) locomotor disability;
- (vi) mental retardation;
- (vii) mental illness;

40 28

2(j) "employer" means,-

- (i) in relation to a Government, the authority notified by the Head of the Department in this behalf or where no such authority is notified, the Head of the Department; and
- (ii) in relation to an establishment, the Chief Executive Officer of that establishment;

2(k) "establishment" means a corporation established by or under a Central, Provincial or State Act, or an authority or a body owned or controlled or aided by the Government or a local authority or a Government company as defined in section 617 of the Companies Act, 1956 (1 of 1956) and includes Departments of a Government;"

10) Among the above definitions, we are more concerned with the definition of "establishment" under Section 2(k) of the Act, which is an exhaustive definition and covers (i) a corporation established by or under a Central, Provincial or State Act, or (ii) an authority or a body owned or controlled or aided by the Government or a local authority, or (iii) a Government company as defined in Section 617 of the Companies Act, 1956 and (iv) Departments of a Government.

11) Chapter VI of the Act deals with the employment of persons with disabilities. The relevant Sections of the said Chapter are as under:-

"32. Identification of posts which can be reserved for persons with disabilities. - Appropriate Governments shall-

41

29

(a) identify posts, in the establishments, which can be reserved for the persons with disability;

(b) at periodical intervals not exceeding three years, review the list of posts identified and up-date the list taking into consideration the developments in technology.

33. Reservation of Posts - Every appropriate Government shall appoint in every establishment such percentage of vacancies not less than three per cent for persons or class of persons with disability of which one per cent each shall be reserved for persons suffering from-

- (i) blindness or low vision;
- (ii) hearing impairment;
- (iii) locomotor disability or cerebral palsy.

in the posts identified for each disability:

Provided that the appropriate Government may, having regard to the type of work carried on in any department or establishment, by notification subject to such conditions, if any, as may be specified in such notification, exempt any establishment from the provisions of this section.

36. Vacancies not filled up to be carried forward.- Where in any recruitment year any vacancy under section 33, cannot be filled up due to non-availability of a suitable person with disability or, for any other sufficient reason, such vacancy shall be carried forward in the succeeding recruitment year and if in the succeeding recruitment year also suitable person with disability is not available, it may first be filled by interchange among the three categories and only when there is no person with disability available for the post in that year, the employer shall fill up the vacancy by appointment of a person, other than a person with disability:

Provided that if the nature of vacancies in an establishment is such that a given category of person cannot be employed, the vacancies may be interchanged among the three categories with the prior approval of the appropriate Government."

- 12) In exercise of the powers conferred by sub-sections (1) and (2) of Section 73 of the Act, the Central Government enacted the

42 (30)

Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Rules, 1996.

13) After enactment of the above Act, in order to consolidate the existing instructions in line with the provisions of the Act, on 29.12.2005, Government of India, Department of Personnel and Training, issued certain instructions by way of an Office Memorandum (OM), with regard to the reservation for the persons with disabilities (physically handicapped persons) in posts and services. The said Office Memorandum specifically states that it shall supersede all previous instructions issued on the subject so far. Respondent No. 1 herein has commended various clauses of the OM dated 29.12.2005. The relevant clauses of the same are extracted hereinbelow:

"2. QUANTUM OF RESERVATION

(i) Three percent of the vacancies, in case of direct recruitment to Group A, B, C and D posts shall be reserved for persons with disabilities of which one per cent each shall be reserved for persons suffering from (i) blindness or low vision, (ii) hearing impairment and (iii) locomotor disability or cerebral palsy in the posts identified for each disability;

(ii) Three percent of the vacancies in case of promotion to Group D, and Group C posts in which the element of direct recruitment, if any, does not exceed 75%, shall be reserved for persons with disabilities of which one per cent each shall be

(43) (31)

reserved for persons suffering from (i) blindness or low vision, (ii) hearing impairment and (iii) locomotor disability or cerebral palsy in the posts identified for each disability.

3. EXEMPTION FROM RESERVATION:

If any Department/Ministry considers it necessary to exempt any establishment partly or fully from the provisions of reservation for persons with disabilities of which one percent each shall be reserved for persons suffering from (i) blindness or low vision, (ii) hearing impairment and (iii) locomotor disability or cerebral palsy in the posts identified for each disability, it may make a reference to the Ministry of Social Justice and Employment giving full justification for the proposal. The grant of exemption shall be considered by an Inter-Departmental Committee set up by the Ministry of Social Justice and Empowerment.

4. IDENTIFICATION OF JOBS/POSTS:

The Ministry of Social Justice and Empowerment have identified the jobs/posts suitable to be held by persons with disabilities and the physical requirement for all such jobs/posts vide their notification no. 16-25/99.NII dated 31.5.2001. The jobs/posts given in Annexure II of the said notification as amended from time to time shall be used to give effect to 3 per cent reservation to the persons with disabilities. It may, however, be noted that:

(a) The nomenclature used for any job/post shall mean and include nomenclature used for other comparable jobs/posts having identical functions.

(b) The list of jobs/posts notified by the Ministry of Social Justice & Empowerment is not exhaustive. The concerned Ministries/Departments shall have the discretion to identify jobs/posts in addition to the jobs/posts already identified by the Ministry of Social Justice & Empowerment. However, no

44 32

Ministry/Department/Establishment shall exclude any identified job/post from the purview of reservation at its own discretion.

(c) If a job/post identified for persons with disabilities is shifted from one group or grade to another group or grade due to change in the pay-scale or otherwise, the job/post shall remain identified.

13. COMPUTATION OF RESERVATION:

Reservation for persons with disabilities in case of Group C and Group D posts shall be computed on the basis of total number of vacancies occurring in all Group C or Group D posts, as the case may be, in the establishment, although the recruitment of the persons with disabilities would only be in the posts identified suitable for them. The number of vacancies to be reserved for the persons with disabilities in case of direct recruitment to Group C posts in an establishment shall be computed by taking into account the total number of vacancies arising in Group C posts for being filled by direct recruitment in a recruitment year both in the identified and non-identified posts under the establishment. The same procedure shall apply for Group D posts. Similarly, all vacancies in promotion quota shall be taken into account while computing reservation in promotion in Group C and Group D posts. Since reservation is limited to identified posts only and number of vacancies reserved is computed on the basis of total vacancies (in identified posts as well as unidentified posts), it is possible that number of persons appointed by reservation in an identified posts may exceed 3 percent.

14. Reservation for persons with disabilities in Group A posts shall be computed on the basis of vacancies occurring in direct recruitment quota in all the identified Group A posts in the establishment. The same method of computation applies for Group B posts.

45

33

15. EFFECTING RESERVATION - MAINTENANCE OF ROSTERS:

(a) all establishments shall maintain separate 100 point reservation roster registers in the format given in Annexure II for determining/effecting reservation for the disabled - one each for Group A posts filled by direct recruitment, Group B posts filled by direct recruitment, Group C posts filled by direct recruitment, Group C posts filled by promotion, Group D posts filled by direct recruitment and Group D posts filled by promotion.

(b) Each register shall have cycles of 100 points and each cycle of 100 points shall be divided into three blocks, comprising the following points :

1st Block - point No.1 to point No.33

2nd Block - point No.34 to point No.66

3rd Block - point No.67 to point No.100

(c) Points 1, 34, and 67 of the roster shall be earmarked reserved for persons with disabilities - one point for each of the three categories of disabilities. The head of the establishment shall decide the categories of disabilities for which the points 1, 34 and 67 will be reserved keeping in view all relevant facts.

(d) All the vacancies in Group C posts falling in direct recruitment quota arising in the establishment shall be entered in the relevant roster register. If the post falling at point No.1 is not identified for the disabled or the head of the establishment considers it desirable not to fill up by a disabled person or it is not possible to fill up that post by the disabled for any other person, one of the vacancies falling at any of the points from 2 to 33 shall be treated as reserved for the disabled and filled as such. Likewise a vacancy falling at any of the points from 34 to 66 or from 67 to 100 shall be filled by the disabled. The purpose of keeping points 1, 34 and 67 as reserved is to fill up the first available suitable vacancy from 1 to 33, first available suitable

(46) (34)

vacancy from 34 to 66 and first available suitable vacancy from 67 to 100 persons with disabilities.

(e) There is a possibility that none of the vacancies from 1 to 33 is suitable for any category of the disabled. In that case two vacancies from 34 to 66 shall be filled as reserved for persons with disabilities. If the vacancies from 34 to 66 are also not suitable for any category, three vacancies shall be filled as reserved from the third block containing points from 67 to 100. This means that if no vacancy can be reserved in a particular block, it shall be carried into the next block.

(f) After all the 100 points of the roster are covered, a fresh cycle of 100 points shall start.

(g) If the number of vacancies in a year is such as to cover only one block or two, discretion as to which category of the disabled should be accommodated first shall vest in the head of the establishment, who shall decide on the basis of the nature of the post, the level of representation of the specific disabled category in the concerned grade/post etc.

(h) A separate roster shall be maintained for Group C posts filled by promotion and procedure as explained above shall be followed for giving reservation to persons with disabilities. Likewise two separate rosters shall be maintained for Group D posts, one for the posts filled by direct recruitment and another for posts filled by promotion.

(i) Reservation in Group A and Group B posts is determined on the basis of vacancies in the identified posts only. Separate rosters for Group A posts and Group B posts in the establishment shall be maintained. In the rosters maintained for Group A and Group B posts, all vacancies of direct recruitment arising in identified posts shall be entered and reservation shall be effected the same way as explained above.

16. INTER SE EXCHANGE AND CARRY FORWARD OF RESERVATION IN CASE OF DIRECT RECRUITMENT

47 35

- (a) Reservation for each of the three categories of persons with disabilities shall be made separately. But if the nature of vacancies in an establishment is such that a person of a specific category of disability cannot be employed, the vacancies may be interchanged among the three categories with the approval of the Ministry of Social Justice and Empowerment and reservation may be determined and vacancies filled accordingly.
- (b) If any vacancy reserved for any category of disability cannot be filled due to non-availability of a suitable person with that disability or, for any other sufficient reason, such vacancy shall not be filled and shall be carried forward as a 'backlog reserved vacancy' to the subsequent recruitment year.
- (c) In the subsequent recruitment year the backlog reserved vacancy shall be treated as reserved for the category of disability for which it was kept reserved in the initial year of recruitment. However, if a suitable person with that disability is not available, it may be filled by interchange among the three categories of disabilities. In case no suitable person with disability is available for filling up the post in the subsequent year also, the employer may fill up the vacancy by appointment of a person other than a person with disability. If the vacancy is filled by a person with disability of the category for which it was reserved or by a person of other category of disability by inter se exchange in the subsequent recruitment year, it will be treated to have been filled by reservation. But if the vacancy is filled by a person other than a person with disability in the subsequent recruitment year, reservation shall be carried forward for a further period upto two recruitment years whereafter the reservation shall lapse. In these two subsequent years, if situation so arises, the procedure for filling up the reserved vacancy shall be the same as followed in the first subsequent recruitment year.

19. HORIZONTALITY OF RESERVATION FOR PERSONS WITH DISABILITIES:

(48) (36)

Reservation for backward classes of citizens (SCs, STs and OBCs) is called vertical reservation and the reservation for categories such as persons with disabilities and ex-servicemen is called horizontal reservation. Horizontal reservation cuts across vertical reservation (in what is called interlocking reservation) and person selected against the quota for persons with disabilities have to be placed in the appropriate category viz. SC/ST/OBC/General candidates depending upon the category to which they belong in the roster meant for reservation of SCs/STs/OBCs. To illustrate, if in a given year there are two vacancies reserved for the persons with disabilities and out of two persons with disabilities appointed, one belongs to a Scheduled Caste and the other to general category then the disabled SC candidate shall be adjusted against the SC point in the reservation roster and the general candidate against unreserved point in the relevant reservation roster. In case none of the vacancies falls on point reserved for the SCs, the disabled candidate belonging to SC shall be adjusted in future against the next available vacancy reserved for SCs.

20. Since the persons with disabilities have to be placed in the appropriate category viz. SC/ST/OBC/ General in the roster meant for reservation of SCs/STs/OBCs, the application form for the post should require the candidates applying under the quota reserved for persons with disabilities to indicate whether they belong to SC/ST/OBC or General category."

14) Clauses 21 and 22 of the said OM enable the Government for relaxation in age limit as well as standard of suitability.

15) After the OM dated 29.12.2005, based on the representations made by Respondent No. 1 herein, another OM

(49) (37)

dated 26.04.2006 came to be issued. The details and the directions contained in the said OM are as follows:

"Dated the 26th April, 2006

OFFICE MEMORANDUM

Sub: Reservation for the Persons with Disabilities

The undersigned is directed to say that the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 which came into existence on 01.01.1996 provides for reservation for persons with disability in the posts identified for three categories of disabilities namely (i) blindness or low vision, (ii) hearing impairment and (iii) locomotor disability or cerebral palsy. Instructions have also been issued by this Department for providing reservation for such persons. In spite of the Act and the instructions of this Department, vacancies were not earmarked reserved or were not filled by reservation in some establishments.

2. The matter has been considered carefully and it has been decided that reservation for persons with disabilities should be implemented in right earnest and there should be no deviation from the scheme of reservation, particularly after the Act came into effect. In order to achieve this objective, all the establishments should prepare the reservation roster registers as provided in this Department's O.M. No. 36035/3/2004-Estt (Res) dated 29.12.2005 starting from the year 1996 and reservation for persons with disabilities be earmarked as per instructions contained in that OM. If some or all the vacancies so earmarked had not been filled by reservation and were filled by able bodied persons either for the reason that points of reservation had not been earmarked properly at the appropriate time or persons with disabilities did not become available, such unutilized reservation may be treated as having been carried forward to the first recruitment year occurring after issue of this O.M. and be filled as such. If it is not possible to fill up such reserved vacancies during the said recruitment year, reservation would be carried forward for further two years, whereafter it may be treated as lapsed.

3. It has been observed that some recruiting agencies declare in their advertisements that blind/partially blind candidates need not apply and that separate examinations would be conducted for visually handicapped candidates. Attention is invited to para

(50) (38)

7 of this Department's O.M. No. 36035/3/2004-Estt (Res) dated 29.12.2005 which provides that persons with disabilities selected on their own merit will not be adjusted against the reserved share of vacancies. It means that persons with disabilities who are selected on their own merit have to be adjusted against the unreserved vacancies and reservation has to be given in addition. If visually handicapped candidates or any other category of handicapped candidates are debarred from applying on the ground that a separate examination would be conducted for them, chances of handicapped candidates being selected on their own merit would be eliminated. Thus, debarring of any category of handicapped candidates in the above manner is against the provisions contained in the aforesaid O.M. It is, therefore, requested that persons with disabilities should not be debarred from applying for the posts identified suitable for them and should be provided opportunity to compete for the unreserved vacancies as well by holding a common examination.

4. Contents of this O.M. may be brought to the notice of all concerned.

Sd/-
(K.G.Verma)
Deputy Secretary to the Govt. of India"

16) Another OM dated 10.12.2008, issued by the Department of Personnel and Training, was also brought to our notice whereunder a Special Recruitment Drive to fill up the backlog reserved vacancies for the persons with disabilities was initiated. The said OM mainly speaks about filling up of "backlog reserved vacancies". Relevant portion of the said OM is extracted hereinbelow:

"Dated the 10th December, 2008

OFFICE MEMORANDUM

(54) (39)

Sub: Special Recruitment Drive to fill up the backlog reserved vacancies for Persons with Disabilities

The undersigned is directed to say that this Department's O.M. No. 36035/3/2004-Estt(Res) dated 29.12.2005 provides that if any vacancy reserved for any category of disability cannot be filled due to non-availability of a suitable person with that disability or for any other sufficient reason, such vacancy is not filled and is carried forward as a 'backlog reserved vacancy' to the subsequent recruitment year. In the subsequent recruitment year, the 'backlog reserved vacancy' is treated as reserved for the category of disability for which it was kept reserved in the initial year of recruitment and filled as such. However, if a suitable person with that disability is not available in the subsequent recruitment also, it may be filled by Interchange among the three categories of disabilities, failing which by appointment of a person other than a person with disability. It may, thus, be seen that if a vacancy is earmarked reserved for any category of disability and a suitable person with that disability is not available to fill it up in the initial year of recruitment, it becomes a 'backlog reserved vacancy' for first subsequent recruitment year.

2. As per instructions existing prior to issue of O.M. dated 29.12.2005, if in any year, suitable physically handicapped candidates were not available to fill up a reserved vacancy, the vacancy was filled by an other category candidate and reservation was carried forward for a period of upto three recruitment years. In the event of non-availability of suitable persons with disabilities, the reserved vacancies were not kept unfilled. Thus there was no provision of backlog reserved vacancies of persons with disabilities prior to 29.12.2005. Nevertheless, it is possible that some Ministries/Departments/establishments might have kept some vacancies earmarked reserved for the persons with disability unfilled due to non-availability of persons with disability. If there exist such vacancies, these will be treated as backlog reserved vacancies for the current recruitment year"

17) By issuing such directions, the Department of Personnel and Training directed all the Ministries/Departments to launch a

52 40

Special Recruitment Drive and fixed target dates for fulfilling various stages.

Discussion:

18) In the light of the above statutory provisions as well as various clauses of the OM dated 29.12.2005, let us analyze whether the High Court was justified in passing the impugned judgment.

19) Before adverting to the rival contentions submitted by the appellants and the respondents, it is relevant to comprehend the background and the objective of the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995.

20) India as a welfare State is committed to promote overall development of its citizens including those who are differently abled in order to enable them to lead a life of dignity, equality, freedom and justice as mandated by the Constitution of India. The roots of statutory provisions for ensuring equality and equalization of opportunities to the differently abled citizens in our country could be traced in Part III and Part IV of the Constitution. For the persons with disabilities, the changing world offers more new

(53) (41)

opportunities owing to technological advancement, however, the actual limitation surfaces only when they are not provided with equal opportunities. Therefore, bringing them in the society based on their capabilities is the need of the hour.

21) Although, the Disability Rights Movement in India commenced way back in 1977, of which Respondent No. 1 herein was an active participant, it acquired the requisite sanction only at the launch of the Asian and Pacific Decade of Disabled Persons in 1993-2002, which gave a definite boost to the movement. The main need that emerged from the meet was for a comprehensive legislation to protect the rights of persons with disabilities. In this light, the crucial legislation was enacted in 1995 viz., the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 which empowers persons with disabilities and ensures protection of their rights. The Act, in addition to its other prospects, also seeks for better employment opportunities to persons with disabilities by way of reservation of posts and establishment of a Special Employment Exchange for them.

22) For the same, Section 32 of the Act stipulates for identification of posts which can be reserved for persons with

54 42

disabilities. Section 33 provides for reservation of posts and Section 36 thereof provides that in case a vacancy is not filled up due to non-availability of a suitable person with disability, in any recruitment year such vacancy is to be carried forward in the succeeding recruitment year. The difference of opinion between the appellants and the respondents arises on the point of interpretation of these sections.

23) It is the stand of the Union of India that the Act provides for only 3% reservation in the vacancies in the posts identified for the disabled persons and not on the total cadre strength of the establishment whereas Mr. S.K. Rungta, learned senior counsel (R-1) appearing in person submitted that accepting the interpretation proposed by the Union of India will flout the policy of reservation encompassed under Section 33 of the Act. He further submitted that the High Court has rightly held that the reservation of 3% for differently abled persons in conformity with the Act should have to be computed on the basis of the total strength of a cadre and not just on the basis of the vacancies available in the posts that are identified for differently abled persons, thereby declaring certain clauses of the OM dated

(55) (43)

29.12.2005 as unacceptable and contrary to the mandate of Section 33 of the Act.

24) Two aspects of the impugned judgment have been challenged before this Court:-

(a) The manner of computing 3% reservation for the persons with the disabilities as per Section 33 of the Act.

(b) Whether post based reservation must be adhered to or vacancy based reservation.

25) Now let us consider the reasoning of the High Court and the submissions made by the parties.

26) Primarily, we would like to clarify that there is a sea of difference in computing reservation on the basis of total cadre strength and on the basis of total vacancies (both inclusive of identified and unidentified) in the cadre strength. At the outset, a reference to the impugned OM dated 29.12.2005 would, in unequivocal terms, establish that the matter in dispute in the given case is whether the latter method of computation of reservation will uniformly apply to the posts in Group A, B, C and D

56 44

or will it be applicable only to Group C and D. The question pertaining to computation of reservation on the basis of total cadre strength does not even arise in the given circumstance of the case. However, the High Court, in the impugned judgment, went on to uphold the view that the computation of reservation must be on the basis of total cadre strength which is clearly erroneous on the face of it. Inadvertently, the respondents herein have also adopted the same line of argument in their oral and written submissions. As a result, the point for consideration before this Court is whether the modus of computation of reservation on the basis of total number of vacancies (both inclusive of identified and unidentified) in the cadre strength will uniformly apply to Group A, B, C and D or will it be applicable only to Group C and D.

27) It is the stand of the Union of India that for vivid understanding of the reservation policy laid down under Section 33 of the Act, it is essential to read together Sections 32 and 33 of the Act. It was also submitted that a conjoint reading of the above referred sections, mandates only reservation of vacancies in the identified posts and not in all the posts or against the total

(57) (45)

number of vacancies in the cadre strength. However, it was also admitted that the computation of reservation is being done in respect of Group C and D posts on the basis of total number of vacancies (both inclusive of identified and unidentified) in the cadre strength since 1977. In fact, the abovesaid contention has been raised in **Govt. of India through Secretary and Anr. vs. Ravi Prakash Gupta & Anr.** (2010) 7 SCC 626 and, therefore, it is no longer *res integra*.

28) The question for determination raised in this case is whether the reservation provided for the disabled persons under Section 33 of the Act is dependent upon the identification of posts as stipulated by Section 32. In the aforementioned case, the Government of India sought to contend that since they have conducted the exercise of identification of posts in civil services in terms of Section 32 only in the year 2005, the reservation has to be computed and applied only with reference to the vacancies filled up from 2005 onwards and not from 1996 when the Act came into force. This Court, after examining the inter-dependence

58 46

of Sections 32 and 33 viz., identification of posts and the scheme of reservation, rejected this contention and held as follows:-

"25.The submission made on behalf of the Union of India regarding the implementation of the provisions of Section 33 of the Disabilities Act, 1995, only after identification of posts suitable for such appointment, under Section 32 thereof, runs counter to the legislative intent with which the Act was enacted. To accept such a submission would amount to accepting a situation where the provisions of Section 33 of the aforesaid Act could be kept deferred indefinitely by bureaucratic inaction. Such a stand taken by the petitioners before the High Court was rightly rejected. Accordingly, the submission made on behalf of the Union of India that identification of Grade 'A' and 'B' posts in the I.A.S. was undertaken after the year 2005 is not of much substance.

26. As has been pointed out by the High Court, neither Section 32 nor Section 33 of the aforesaid Act makes any distinction with regard to Groups A, B, C and D posts. They only speak of identification and reservation of posts for people with disabilities, though the proviso to Section 33 does empower the appropriate Government to exempt any establishment from the provisions of the said Section, having regard to the type of work carried on in any department or establishment. No such exemption has been pleaded or brought to our notice on behalf of the petitioners.

27. It is only logical that, as provided in Section 32 of the aforesaid Act, posts have to be identified for reservation for the purposes of Section 33, but such identification was meant to be simultaneously undertaken with the coming into operation of the Act, to give effect to the provisions of Section 33. The legislature never intended the provisions of Section 32 of the Act to be used as a tool to deny the benefits of Section 33 to these categories of disabled persons indicated therein. Such a submission strikes at the foundation of the provisions relating to the duty cast upon the appropriate Government to make appointments in every establishment.

(59) (47)

29. While it cannot be denied that unless posts are identified for the purposes of Section 33 of the aforesaid Act, no appointments from the reserved categories contained therein can be made, and that to such extent the provisions of Section 33 are dependent on Section 32 of the Act, as submitted by the learned ASG, but the extent of such dependence would be for the purpose of making appointments and not for the purpose of making reservation. In other words, reservation under Section 33 of the Act is not dependent on identification, as urged on behalf of the Union of India, though a duty has been cast upon the appropriate Government to make appointments in the number of posts reserved for the three categories mentioned in Section 33 of the Act in respect of persons suffering from the disabilities spelt out therein. In fact, a situation has also been noticed where on account of non-availability of candidates some of the reserved posts could remain vacant in a given year. For meeting such eventualities, provision was made to carry forward such vacancies for two years after which they would lapse. Since in the instant case such a situation did not arise and posts were not reserved under Section 33 of the Disabilities Act, 1995, the question of carrying forward of vacancies or lapse thereof, does not arise.

31. We, therefore, see no reason to interfere with the judgment of the High Court impugned in the Special Leave Petition which is, accordingly, dismissed with costs. All interim orders are vacated. The petitioners are given eight weeks' time from today to give effect to the directions of the High Court."

29) In the light of the above pronouncement, it is clear that the scope of identification comes into picture only at the time of appointment of a person in the post identified for disabled persons and is not necessarily relevant at the time of computing 3% reservation under Section 33 of the Act. In succinct, it was held in **Ravi Prakash Gupta (supra)** that Section 32 of the Act is not a precondition for computation of reservation of 3% under Section

60 48

33 of the Act rather Section 32 is the following effect of Section 33.

30) Apart from the reasoning of this Court in **Ravi Prakash Gupta (supra)**, even a reading of Section 33, at the outset, establishes vividly the intention of the legislature viz., reservation of 3% for differently abled persons should have to be computed on the basis of total vacancies in the strength of a cadre and not just on the basis of the vacancies available in the identified posts. There is no ambiguity in the language of Section 33 and from the construction of the said statutory provision only one meaning is possible.

31) A perusal of Section 33 of the Act reveals that this section has been divided into three parts. The first part is "every appropriate Government shall appoint in every establishment such percentage of vacancies not less than 3% for persons or class of persons with disability." It is evident from this part that it mandates every appropriate Government shall appoint a minimum of 3% vacancies in its establishments for persons with disabilities. In this light, the contention of the Union of India that

61 49

reservation in terms of Section 33 has to be computed against identified posts only is not tenable by any method of interpretation of this part of the Section.

32) The second part of this section starts as follows: "...of which one percent each shall be reserved for persons suffering from blindness or low vision, hearing impairment & locomotor disability or cerebral palsy in the posts identified for each disability." From the above, it is clear that it deals with distribution of 3% posts in every establishment among 3 categories of disabilities. It starts from the word "of which". The word "of which" has to relate to appointing not less than 3% vacancies in an establishment and, in any way, it does not refer to the identified posts. In fact, the contention of the Union of India is sought to be justified by bringing the last portion of the second part of the section viz. "...identified posts" in this very first part which deals with the statutory obligation imposed upon the appropriate Government to "appoint not less than 3% vacancies for the persons or class of persons with disabilities." In our considered view, it is not plausible in the light of established rules of interpretation. The

(62) (50)

minimum level of representation of persons with disabilities has been provided in this very first part and the second part deals with the distribution of this 3% among the three categories of disabilities. Further, in the last portion of the second part the words used are "in the identified posts for each disability" and not "of identified posts". This can only mean that out of minimum 3% of vacancies of posts in the establishments 1% each has to be given to each of the 3 categories of disability viz., blind and low vision, hearing impaired and locomotor disabled or cerebral palsy separately and the number of appointments equivalent to the 1% for each disability out of total 3% has to be made against the vacancies in the identified posts. The attempt to read identified posts in the first part itself and also to read the same to have any relation with the computation of reservation is completely misconceived.

33) The third part of the Section is the proviso which reads thus: "Provided that the appropriate Government may, having regard to the type of work carried on in any department or establishment, by notification subject to such conditions, if any, as may be

(63) (51)

specified in such notification, exempt any establishment from the provisions of this section." The proviso also justifies the above said interpretation, that the computation of reservation has to be against the total number vacancies in the cadre strength and not against the identified posts. Had the legislature intended to mandate for computation of reservation against the identified posts only, there was no need for inserting the proviso to Section which empowers the appropriate Government to exempt any establishment either partly or fully from the purview of the Section subject to such conditions contained in the notification to be issued in the Official Gazette in this behalf. Certainly, the legislature did not intend to give such arbitrary power for exemption from reservation for persons with disabilities to be exercised by the appropriate Government when the computation is intended to be made against the identified posts.

34) In this regard, another provision of the said Act also supports this interpretation. Section 41 of the said Act mandates the appropriate Government to frame incentive schemes for employers with a view to ensure that 5% of their work force is

(52) (64)

composed of persons with disabilities. The said section is reproduced hereinbelow:

"41. Incentives to employers to ensure five per cent of the work force is composed of persons with disabilities.- The appropriate Government and the local authorities shall, within limits to their economic capacity and development, provide incentives to employers both in public and private sectors to ensure that at least five percent of their work force is composed of persons with disabilities."

Thus, on a conjoint reading of Sections 33 and 41, it is clear that while Section 33 provides for a minimum level of representation of 3% in the establishments of appropriate Government, the legislature intended to ensure 5% of representation in the entire work force both in public as well as private sector.

35) Moreover, the intention of the legislature while framing the Act can also be inferred from the Draft Rights of Persons with Disabilities Bill, 2012, which is pending in the Parliament for approval. In Chapter 6 of the Bill, viz., Special Provisions for Persons with Benchmark Disabilities, similar sections like Sections 32 & 33 in the Act have been incorporated under Sections 38 and 39 which are as under:-

"Section 38. Identification of Posts which can be

(65) (53)

Reserved for Persons with Benchmark Disabilities:

Appropriate Governments shall - (a) identify posts in establishments under them which can be reserved for persons with benchmark disability as mentioned in section 39; (b) at periodical intervals not exceeding three years, review and revise the list of identified posts, taking into consideration developments in technology.

Section 39. Reservation of Posts for Persons with Benchmark Disabilities:-

(1) Every appropriate Government shall reserve, in every establishment under them, not less than 5% of the vacancies meant to be filled by direct recruitment, for persons or class of persons with benchmark disability, of which 1% each shall be of all posts reserved for persons with following disabilities:-

- i) blindness & low vision (with reservation of 0.5% of the vacancies for each of the two disabilities).
- ii) hearing impairment & speech impairment.
- iii) locomotor disability including cerebral palsy, leprosy cured and muscular dystrophy.
- iv) autism, intellectual disability and mental illness
- v) multiple disabilities from among i to iv above including deaf blindness.

Provided that the appropriate Government may, having regard to the type of work carried on in any department or establishment, by notification subject to such conditions, if any, as may be specified in such notification, exempt any establishment from the provisions of this section.

(2) If sufficient number of qualified persons with benchmark disabilities are not available in a particular year, then the reservation may be carried forward for upto the next three recruitment years, and if in such succeeding recruitment years also a suitable person with benchmark disability is not available, then the post in the fourth year may be first filled by interchange among the categories of disabilities; and only when there is no person with any benchmark disability available for the post in that year, the vacancy may be filled by appointment.

66 54

of a person, other than a person with benchmark disability."

A perusal of Sections 38 and 39 of the Bill clarifies all the ambiguities raised in this appeal. The intention of the legislature is clearly to reserve in every establishment under the appropriate Government, not less than 3% of the vacancies for the persons or class of persons with disability, of which 1% each shall be reserved for persons suffering from blindness or low vision, hearing impairment and locomotor disability or cerebral palsy in the posts identified for each disability.

36) Admittedly, the Act is a social legislation enacted for the benefit of persons with disabilities and its provisions must be interpreted in order to fulfill its objective. Besides, it is a settled rule of interpretation that if the language of a statutory provision is unambiguous, it has to be interpreted according to the plain meaning of the said statutory provision. In the present case, the plain and unambiguous meaning of Section 33 is that every appropriate Government has to appoint a minimum of 3% vacancies in an establishment out of which 1% each shall be reserved for persons suffering from blindness and low vision,

55

67

persons suffering from hearing impairment and persons suffering from locomotor or cerebral palsy.

37) To illustrate, if there are 100 vacancies of 100 posts in an establishment, the concerned establishment will have to reserve a minimum of 3% for persons with disabilities out of which at least 1% has to be reserved separately for each of the following disabilities: persons suffering from blindness or low vision, persons suffering from hearing impairment and the persons suffering from locomotor disability or cerebral palsy. Appointment of 1 blind person against 1 vacancy reserved for him/her will be made against a vacancy in an identified post for instance, the post of peon, which is identified for him in group D. Similarly, one hearing impaired will be appointed against one reserved vacancy for that category in the post of store attendant in group D post. Likewise, one person suffering from locomotor disability or cerebral palsy will be appointed against the post of "Farash" group D post identified for that category of disability. It was argued on behalf of Union of India with reference to the post of driver that since the said post is not suitable to be manned by a person suffering from

(68) (56)

blindness, the above interpretation of the Section would be against the administrative exigencies. Such an argument is wholly misconceived. A given post may not be identified as suitable for one category of disability, the same could be identified as suitable for another category or categories of disability entitled to the benefit of reservation. In fact, the second part of the Section has clarified this situation by providing that the number of vacancies equivalent to 1% for each of the aforementioned three categories will be filled up by the respective category by using vacancies in identified posts for each of them for the purposes of appointment.

38) It has also been submitted on behalf of the appellants herein that since reservation of persons with disabilities in Group C and D has been in force prior to the enactment and is being made against the total number of vacancies in the cadre strength according to the OM dated 29.12.2005 but the actual import of Section 33 is that it has to be computed against identified posts only. This argument is also completely misconceived in view of the plain language of the said Section, as deliberated above. Even, for the sake of arguments, if we accept that the computation of

57 69

reservation in respect of Group C and D posts is against the total vacancies in the cadre strength because of the applicability of the scheme of reservation in Group C and D posts prior to enactment, Section 33 does not distinguish the manner of computation of reservation between Group A and B posts or Group C and D posts respectively. As such, one statutory provision cannot be interpreted and applied differently for the same subject matter.

39) Further, if we accept the interpretation contended by the appellants that computation of reservation has to be against the identified posts only, it would result into uncertainty of the application of the scheme of reservation because experience has shown that identification has never been uniform between the Centre and States and even between the Departments of any Government. For example, while a post of middle school teacher has been notified as identified as suitable for the blind and low vision by the Central Government, it has not been identified as suitable for the blind and low vision in some States such as Gujarat and J&K etc. This has led to a series of litigations which have been pending in various High Courts. In addition, Para 4 of

(70) (58)

the OM dated 29.12.2005 dealing with the issue of identification of jobs/posts in sub clause (b) states that list of the jobs/posts notified by the Ministry of Social Justice & Empowerment is not exhaustive which further makes the computation of reservation uncertain and arbitrary in the event of acceptance of the contention raised by the appellants.

40) Another contention raised by the appellants is that the computation of reservation against the total vacancies in the cadre strength in Group A & B will violate the rule of 50% ceiling of reservation in favour of SC, ST and OBC as laid down by this Court in **Indra Sawhney vs. Union of India and others** AIR 1993 SC 477. This contention is also not tenable and is against the abovesaid judgment. It is difficult to understand as to how the computation of reservation against total vacancies in the cadre strength in Group A and B will violate 50% ceiling when its computation on that basis in Group C and D will not violate the said ceiling. There is no rationale of distinguishing between the manner of computation of reservation with regard to Group A and B posts on the one hand and manner of computation of

71 59

reservation with regard to Group C and D posts on the other on this ground.

41) A perusal of **Indra Sawhney (supra)** would reveal that the ceiling of 50% reservation applies only to reservation in favour of other Backward classes under Article 16(4) of the Constitution of India whereas the reservation in favour of persons with disabilities is horizontal, which is under Article 16(1) of the Constitution. In fact, this Court in the said pronouncement has used the example of 3% reservation in favour of persons with disabilities while dealing with the rule of 50% ceiling. Para 95 of the judgment clearly brings out that after selection and appointment of candidates under reservation for persons with disabilities they will be placed in the respective rosters of reserved category or open category respectively on the basis of the category to which they belong and, thus, the reservation for persons with disabilities *per se* has nothing to do with the ceiling of 50%. Para 95 is reproduced as follows:-

"95.all reservations are not of the same nature. There are two types of reservations, which may, for the sake of convenience, be referred to as 'vertical reservations' and

72 60

'horizontal reservations'. The reservations in favour of Scheduled Castes, Scheduled Tribes and other backward classes [under Article 16(4)] may be called vertical reservations whereas reservations in favour of physically handicapped [under Clause (1) of Article 16] can be referred to as horizontal reservations. Horizontal reservations cut across the vertical reservations - what is called inter-locking reservations. To be more precise, suppose 3% of the vacancies are reserved in favour of physically handicapped persons; this would be a reservation relatable to Clause (1) of Article 16. The persons selected against this quota will be placed in the appropriate category; if he belongs to S.C. category he will be placed in that quota by making necessary adjustments; similarly, if he belongs to open competition (O.C.) category, he will be placed in that category by making necessary adjustments. Even after providing for these horizontal reservations, the percentage of reservations in favour of backward class of citizens remains - and should remain - the same....."

42) Yet another contention raised by the appellants is that the reservation for persons with disabilities must be vacancy based reservation whereas Respondent No. 1 herein contended that it must be post based reservation as laid down by the High Court in the impugned judgment. Respondent No. 1 herein relied upon the heading of Section 33 of the Act, viz., 'Reservation of Posts', to propose the view that the reservation policy contemplated under Section 33 is post based reservation.

43) It is settled law that while interpreting any provision of a statute the plain meaning has to be given effect and if language therein is simple and unambiguous, there is no need to traverse

(73) (61)

beyond the same. Likewise, if the language of the relevant section gives a simple meaning and message, it should be interpreted in such a way and there is no need to give any weightage to headings of those paragraphs. This aspect has been clarified in **Prakash Nath Khanna & Anr. vs. Commissioner of Income Tax & Anr.**, (2004) 9 SCC 686. Paragraph 13 of the said judgment is relevant which reads as under:

"13. It is a well-settled principle in law that the court cannot read anything into a statutory provision which is plain and unambiguous. A statute is an edict of the legislature. The language employed in a statute is the determinative factor of legislative intent. The first and primary rule of construction is that the intention of the legislation must be found in the words used by the legislature itself. The question is not what may be supposed and has been intended but what has been said. "Statutes should be construed, not as theorems of Euclid", Judge Learned Hand said, "but words must be construed with some imagination of the purposes which lie behind them". (See *Lenigh Valley Coal Co. v. Yensavage*. The view was reiterated in *Union of India v. Philip Tiago De Gama of Vedem Vasco De Gama* and *Padma Sundara Rao v. State of T.N.*."

44) It is clear that when the provision is plainly worded and unambiguous, it has to be interpreted in such a way that the Court must avoid the danger of a prior determination of the meaning of a provision based on their own preconceived notions of ideological structure or scheme into which the provision to be interpreted is somewhat fitted. While interpreting the provisions, the Court only

74 62

interprets the law and cannot legislate it. It is the function of the Legislature to amend, modify or repeal it, if deemed necessary.

45) The heading of a Section or marginal note may be relied upon to clear any doubt or ambiguity in the interpretation of the provision and to discern the legislative intent. However, when the Section is clear and unambiguous, there is no need to traverse beyond those words, hence, the headings or marginal notes cannot control the meaning of the body of the section. Therefore, the contention of Respondent No. 1 herein that the heading of Section 33 of the Act is "Reservation of posts" will not play a crucial role, when the Section is clear and unambiguous.

46) Further, the respondents heavily relied on a decision of the Constitution Bench in **R.K. Sabharwal and others vs. State of Punjab and others** (1995) 2 SCC 745 to substantiate their contention. Para 6 reads as under:-

"6. The expressions "posts" and "vacancies", often used in the executive instructions providing for reservations, are rather problematical. The word "post" means an appointment, job, office or employment. A position to which a person is appointed. "Vacancy" means an unoccupied post or office. The plain meaning of the two expressions make it clear that there must be

75 (63)

a 'post' in existence to enable the 'vacancy' to occur. The cadre-strength is always measured by the number of posts comprising the cadre. Right to be considered for appointment can only be claimed in respect of a post in a cadre. As a consequence the percentage of reservation has to be worked out in relation to the number of posts, which form the cadre-strength. The concept of 'vacancy' has no relevance in operating the percentage of reservation."

47) Adhering to the decision laid by the Constitution Bench in **R.K. Sabharwal (supra)**, the High Court held as follows:-

16. The Disabilities Act was enacted for protection of the rights of the disabled in various spheres like education, training, employment and to remove any discrimination against them in the sharing of development benefits vis-à-vis non-disabled persons. In the light of the legislative aim it is necessary to give purposive interpretation to section 33 with a view to achieve the legislative intendment of attaining equalization of opportunities for persons with disabilities. The fact that the vacancy-based roster is to be maintained does not mean that 3% reservation has to be computed only on the basis of vacancy. The difference between the posts and vacancies has been succinctly pointed out in the Supreme Court decision in the case of **R.K. Sabharwal and Others vs state of Punjab and others** AIR 1995 SC 1371 wherein it was held that the word "post" means an appointment, job, office or employment, a position to which a person is appointed. "Vacancy" means an unoccupied post or office. The plain meaning of the two expressions make it clear that there must be a 'post' in existence to enable the vacancy to occur. The cadre-strength is always measured by the number of posts comprising the cadre. Right to be considered for appointment can only be claimed in respect of a post in a cadre. As a consequence the percentage of reservation has to be worked out in relation to the number of posts which form the cadre-strength. The concept of 'vacancy' has no relevance in operating the percentage of reservation. Therefore, in our opinion, 3 % reservation for disabled has to be computed on the

76 64

basis of total strength of the cadre i.e. both identified as well as unidentified posts...."

48) However, the decision in **R.K Sabharwal (supra)** is not applicable to the reservation for the persons with disabilities because in the above said case, the point for consideration was with regard to the implementation of the scheme of reservation for SC, ST & OBC, which is vertical reservation whereas reservation in favour of persons with disabilities is horizontal. We harmonize with the stand taken by the Union of India, the appellant herein in this regard. Besides, the judgment in **R.K Sabharwal (supra)** was pronounced before the date on which the Act came into force, as a consequence, the intent of the Act must be given priority over the decision in the above said judgment. Thus, in unequivocal terms, the reservation policy stipulated in the Act is vacancy based reservation.

Conclusion:

49) Employment is a key factor in the empowerment and inclusion of people with disabilities. It is an alarming reality that

(77) (65)

the disabled people are out of job not because their disability comes in the way of their functioning rather it is social and practical barriers that prevent them from joining the workforce. As a result, many disabled people live in poverty and in deplorable conditions. They are denied the right to make a useful contribution to their own lives and to the lives of their families and community.

50) The Union of India, the State Governments as well as the Union Territories have a categorical obligation under the Constitution of India and under various International treaties relating to human rights in general and treaties for disabled persons in particular, to protect the rights of disabled persons. Even though the Act was enacted way back in 1995, the disabled people have failed to get required benefit until today.

51) Thus, after thoughtful consideration, we are of the view that the computation of reservation for persons with disabilities has to be computed in case of Group A, B, C and D posts in an identical manner viz., **"computing 3% reservation on total number of vacancies in the cadre strength"** which is the intention of the

78 66

legislature. Accordingly, certain clauses in the OM dated 29.12.2005, which are contrary to the above reasoning are struck down and we direct the appropriate Government to issue new Office Memorandum(s) in consistent with the decision rendered by this Court.

52) Further, the reservation for persons with disabilities has nothing to do with the ceiling of 50% and hence, **Indra Sawhney (supra)** is not applicable with respect to the disabled persons.

53) We also reiterate that the decision in **R.K. Sabharwal (supra)** is not applicable to the reservation for the persons with disabilities because in the above said case, the point for consideration was with regard to the implementation of the scheme of reservation for SC, ST & OBC, which is vertical reservation, whereas reservation in favour of persons with disabilities is horizontal.

Directions:

(79) (67)

54) In our opinion, in order to ensure proper implementation of the reservation policy for the disabled and to protect their rights, it is necessary to issue the following directions:

- (i) We hereby direct the appellant herein to issue an appropriate order modifying the OM dated 29.12.2005 and the subsequent OMs consistent with this Court's Order within three months from the date of passing of this judgment.
- (ii) We hereby direct the "appropriate Government" to compute the number of vacancies available in all the "establishments" and further identify the posts for disabled persons within a period of three months from today and implement the same without default.
- (iii) The appellant herein shall issue instructions to all the departments/public sector undertakings/Government companies declaring that the non observance of the scheme of reservation for persons with disabilities should be considered as an act of non-obedience and Nodal Officer in department/public sector undertakings/Government companies, responsible for the proper

84 68

strict implementation of reservation for person with disabilities, be departmentally proceeded against for the default.

55) Before parting with the case, we would like to place on record appreciation for Mr. S.K Rungta, learned senior counsel for rendering commendable assistance to the Court. The appeal is disposed of with the above terms.

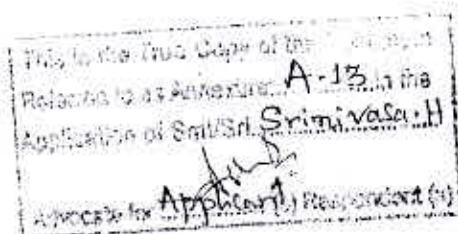
.....CJI
(P. SATHASIVAM)

.....J.
(RANJANA PRAKASH DESAI)

.....J.
(RANJAN GOGOI)

NEW DELHI:
OCTOBER 08, 2013.

VP
True copy



(84) (69)

ANNEXURE - 6

Reportable

**IN THE SUPREME COURT OF INDIA
CIVIL ORIGINAL/APPELLATE JURISDICTION
WRIT PETITION (CIVIL) No.521 OF 2008**

Rajeev Kumar Gupta & Others

Petitioners

Versus

Union of India & Others

Respondents

WITH

CIVIL APPEAL NO. 5389 OF 2016

[Arising out of SLP (Civil) No.244 of 2016]

J U D G M E N T

Chelameswar, J.

1. Leave granted in SLP (Civil) No.244 of 2016.
2. The petitioners are employed with Prasar Bharati Corporation of India (hereinafter, "Prasar Bharati"), a statutory corporation brought into existence by the Prasar Bharati (Broadcasting Corporation of India) Act, 1990 (hereinafter "the 1990 Act"). The petitioners are 'persons with disability' (hereinafter, "PWD") as defined under Section 2(t) of the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 (hereinafter "the 1995 Act"). They filed this writ petition aggrieved

70 82

by two office memoranda No.36035/16/91-Estt. (SCT) dated 18.02.1997 and No.36035/3/2004-Estt. (RES) dated 29.12.2005 (hereinafter impugned memorandum I and II respectively) issued by the Department of Personnel and Training, Government of India. The petitioners' grievance is that the impugned memoranda deprive them of the statutory benefit of reservation under the 1995 Act w.r.t. Group A and Group B posts in Prasar Bharati.

3. Posts in Prasar Bharati are classified into four groups - A to D. Each group consists of a number of classes of posts and in each class there are a number of posts. Certain posts were *identified* by the Government of India *vide* notification No. 16-70/2004-DD.III dated 18.01.2007 (hereinafter, "NOTIFICATION") as posts suitable for being filled up with PWD (hereinafter "IDENTIFIED POSTS"); an exercise in compliance with the mandate under Section 32 of the 1995 Act¹. After such identification, the 'appropriate Government'².

¹ Section 32- "Identification of posts which can be reserved for persons with disabilities.—Appropriate Governments shall-

(a) identify posts in the establishments, which can be reserved for the persons with disability;

(b) at periodical intervals not exceeding three years, review the list of posts identified and up-date the list taking into consideration the developments in technology."

The 1995 Act was enacted on 01.01.1996 pursuant to the Proclamation on the Full Participation and Equality of the People with Disabilities in the Asia and Pacific Region adopted in the meeting convened by the Economic and Social Commission for Asian and Pacific Region at Beijing in December 1992 to launch the Asian and Pacific Decade of Disabled Persons 1993-2002. The proclamation was to ensure "opportunities for full participation and equality for people with disabilities, especially in the fields of rehabilitation, education and employment". As a signatory to this proclamation, India passed the 1995 Act.

² The term 'appropriate Government' is defined under Section 2(a) of the 1995 Act.

(83) (71)

is mandated under Section 33³ to reserve not less than three per cent of IDENTIFIED POSTS in favour of PWD.

4. Under the regulations framed under the 1990 Act, various posts (falling in groups A to D) in Prasar Bharati are to be filled up by three different modes i.e. direct recruitment, promotion and some posts partly by direct recruitment and partly by promotion.

5. Memorandum II provides for reservation in favour of PWD to the extent of three per cent in all the IDENTIFIED POSTS in Prasar Bharati, when these are filled up by direct recruitment. However, it provides for three per cent reservation in IDENTIFIED POSTS falling in Groups 'C' and 'D' irrespective of the mode of recruitment i.e. whether by direct recruitment or by promotion. As a consequence, the statutory benefit of three per cent reservation in favour of PWD is denied insofar as IDENTIFIED POSTS in Groups 'A' and 'B' are concerned, since these posts, under relevant regulations of Prasar Bharati are to be filled up exclusively through direct recruitment.

³ Section 33- "Reservation of posts.— Every appropriate Government shall appoint in every establishment such percentage of vacancies not less than three per cent for persons or class of persons with disability of which one per cent shall be reserved for persons suffering from—

- (i) blindness or low vision;
- (ii) hearing impairment;
- (iii) locomotor disability or cerebral palsy;

in the posts identified for such disability;

Provided that the appropriate Government may, having regard to the type of work carried on in any department or establishment, by notification subject to such conditions, if any, as may be specified in such notification, exempt any establishment from the provisions of this section."

The term "establishment" as referred to in Section 33 is defined in Section 2(k) of the 1995 Act.

(84) (72)

6. The crux of the issue before us is legality of denial by the impugned memoranda of the statutory benefit of three per cent reservation in IDENTIFIED POSTS falling in Groups A and B. Such denial, the petitioners contend, violates the State's obligation under Sections 32 and 33 of the 1995 Act and subverts of the object of the said Act enacted by Parliament inter alia to secure opportunities for full participation of PWD in matters of employment.

7. It is relevant to notice the history and background of the impugned memoranda. After enactment of the 1995 Act, impugned memorandum-I was issued purporting to extend the benefit of reservation to certain IDENTIFIED POSTS falling in Groups A and B, which under relevant regulations of Prasar Bharati are to be filled only through direct recruitment. This memorandum was followed by several others (examination of each of them is not necessary for our present purpose) leading to significant confusion regarding the intendment of the Government of India with respect to reservation to PWD candidates. The impugned memorandum II was issued to clarify government's understanding of the problem. The legality (correctness of the government's understanding of the law) of impugned memorandum-II is the issue for our consideration.

8. The petitioners argued,

(i) A large number of IDENTIFIED POSTS in Groups A and B are filled only through promotion. Because of the impugned memoranda, the benefit of reservation under Section 33 of the 1995 Act is denied w.r.t. those posts. Petitioners therefore lose out on a significant amount of opportunity at the upper end of the organizational hierarchy. It cannot be the respondent's case that the petitioners are unfit by virtue of their disability to perform the functions of office in the IDENTIFIED POSTS. Such posts are already identified to be suitable to be filled up with PWD. Classification among the PWD on the basis of the mode of recruitment is discriminatory and the same has no nexus to the objects sought to be achieved either by the 1995 Act or the recruitment. Government of India has created an arbitrary and irrational distinction by excluding IDENTIFIED POSTS in Groups A and B from the benefit of three per cent reservation.

(ii) That the embargo on reservation in promotions laid down by this court in **Indra Sawhney & Others v. Union of India & Others**, 1992 Supp (3) SCC 215 (hereinafter, referred to as the '**Indra Sawhney case**') is not applicable to PWD.

9. The respondents argued⁴

⁴ All the respondents adopted the counter affidavit filed on 9.7.2010 by respondents 4 to 8.

(86) (74)

(i) that the mandate of Section 33 of the 1995 Act applies *only* when the identified posts are sought to be filled up by *direct recruitment*. Impugned memorandum-II only contains a policy decision of the Government of India by which reservation is granted to Group C and Group D posts even when they are sought to be filled up by the mode of promotion. Since the policy decision restricted the reservation in promotion to identified Group C and Group D posts, the petitioners have no right to demand reservation in promotion to identified Group A and Group B posts.

(ii) The respondents further argued that **Indra Sawhney** case clearly ruled that reservations be confined to recruitment at the initial level of recruitment into government service and not at the stage of promotions. Providing for reservation in higher level posts is constitutionally impermissible. The respondents, therefore, argued that in light of the law laid down in **Indra Sawhney**, it is constitutionally impermissible that petitioners to be given three per cent reservation in promotions for identified Group A and Group B posts.

10. Whether any post under the State is to be reserved for being filled up exclusively by some persons belonging to any

75 87

"constitutionally deserving" class of persons or otherwise is a matter of policy choice of the State. Such a policy is either laid down by a statute or executive orders. Various factors are to be taken into consideration for framing any policy such as the nature of responsibilities which a particular post carries, the number of posts available in that class and the representation already existing in that class of posts for persons of the class to which reservation is sought to be provided and myriad other things.

11. But such factors ought to be germane to purposes sought to be achieved by the policy apart from being relevant in the context of the scheme of Articles 14 and 16 of the Constitution. The same principles of law apply even to the question, as to the mode of filling up of any post or class of posts.

12. The policy of the State w.r.t. the issue on hand is regulated by the 1995 Act. It authorises (under Section 32) the appropriate Government to identify the posts suitable to be filled up by PWD. The Government of India has exercised the power and identified the posts *vide* the NOTIFICATION. The NOTIFICATION includes some of the posts in Group A and Group B.⁵

⁵ The following entries in the identification notification are indicative of this fact- entry nos. 285, 289, 291, 363, 366, 379, 535, 547, 555 and 72 in the Group A list and entry nos. 67, 70 and 120.

88 76

13. For some of these IDENTIFIED POSTS in Group A and Group B, the mode of recruitment is only through promotions.⁶ The purpose underlying the statutory exercise of identification under Section 32 of the 1995 Act would be negated if reservation is denied to those IDENTIFIED POSTS by stipulating that either all or some of such posts are to be filled up only through the mode of promotion. It is demonstrated before us that PWD as a class are disentitled to some of the IDENTIFIED POSTS in Groups A and Group B because of the impugned memoranda and the relevant regulations, under which the only mode of appointment to those IDENTIFIED POSTS is through promotion. Once posts are identified under Section 32, the purpose behind such identification cannot be frustrated by prescribing a mode of recruitment which results in denial of statutory reservation. It would be a device to defraud PWD of the statutory benefit under Section 33 of the 1995 Act.

14. We now examine the applicability of the prohibition on reservation in promotions as propounded by **Indra Sawhney**. Prior to **Indra Sawhney**, reservation in promotions were permitted under

⁶ The petitioner annexed replies obtained through RTI at pages 119-122 of the writ petition. A perusal of the annexed documents leaves no doubt that there are several identified posts for which the only possible mode of recruitment under the regulations of *Punjab Bhiroti* is promotion.

The recruitment mode of several posts such as senior engineering assistant (Group B post), Assistant engineer (Group B post), Station engineer (Group A post), Superintending engineer (Group A post) and Chief engineer (Group A post) is through 100% promotion. There are some other posts such as Assistant station engineer (Group A post) for which recruitment is 50% by direct recruitment and 50% by promotions.

77 89

law as interpreted by this Court in *General Manager, Southern Railway & Another v. Rangachari*, AIR 1962 SC 36. *Indra Sawhney* specifically overruled *Rangachari* to the extent that reservations in promotions were held in *Rangachari* to be permitted under Article 16(4) of the Constitution. *Indra Sawhney* specifically addressed the question whether reservations could be permitted in matters of promotion under Article 16(4)⁷. The

⁷See Question No. 7 framed in Hon'ble B.P. Jeevan Reddy, J.'s Judgment in *Indra Sawhney* case.

"7. Whether clause (4) of Article 16 provides reservation only in the matter of initial appointments/recruitment or does it contemplate and provide for reservations being made in the matter of promotion as well?"

90 78

majority held⁸ that reservations in promotion are not permitted under our constitutional scheme.

15. The respondent argued that the answer to Q.7 in *Indra Sawhney* squarely covers the situation on hand and the reasons outlined by the majority opinion in *Indra Sawhney* at para 828 must also apply to bar reservation in promotions to IDENTIFIED POSTS of Group A and Group B.

⁸ Para 828. "We see no justification to multiply 'the risk', which would be the consequence of holding that reservation can be provided even in the matter of promotion. While it is certainly just to say that a handicap should be given to backward class of citizens at the stage of initial appointment, it would be a serious and unacceptable inroad into the rule of equality of opportunity to say that such a handicap should be provided at every stage of promotion throughout their career. That would mean creation of a permanent separate category apart from the mainstream — a vertical division of the administrative apparatus. The members of reserved categories need not have to compete with others but only among themselves. There would be no will to work, compete and excel among them. Whether they work or not, they tend to think their promotion is assured. This in turn is bound to generate a feeling of despondence and 'heart-burning' among open competition members. All this is bound to affect the efficiency of administration. Putting the members of backward classes on a fast-track would necessarily result in leap-frogging and the deleterious effects of 'leap-frogging' need no illustration at our hands. At the initial stage of recruitment reservation can be made in favour of backward class of citizens but once they enter the service, efficiency of administration demands that these members too compete with others and earn promotion like all others; no further distinction can be made thereafter with reference to their 'birth-mark', as one of the learned Judges of this Court has said in another connection. They are expected to operate on equal footing with others. Crutches cannot be provided throughout one's career. That would not be in the interest of efficiency of administration nor in the larger interest of the nation. It is wrong to think that by holding so, we are confining the backward class of citizens to the lowest cadres. It is well-known that direct recruitment takes place at several higher levels of administration and not merely at the level of Class IV and Class III. Direct recruitment is provided even at the level of All India Services. Direct recruitment is provided at the level of District Judges, to give an example nearer home. It may also be noted that during the debates in the Constituent Assembly, none referred to reservation in promotions; it does not appear to have been within their contemplation".

Para 829. "It is true that *Rangachari* [(1962) 2 SCR 586; AIR 1962 SC 36] has been the law for more than 30 years and that attempts to re-open the issue were repelled in *Karanchand Singh* [(1981) 1 SCC 246, 289; 1981 SCC (L&S) 50; (1981) 2 SCR 185, 234]. It may equally be true that on the basis of that decision, reservation may have been provided in the matter of promotion in some of the Central and State services but we are convinced that the majority opinion in *Rangachari* [(1962) 2 SCR 586; AIR 1962 SC 36] to the extent it holds, that Article 16(4) permits reservation even in the matter of promotion, is not sustainable in principle and ought to be departed from. However, taking into consideration all the circumstances, we direct that our decision on this question shall operate only prospectively and shall not affect promotions already made, whether on temporary, officiating or regular/permanent basis. It is further directed that wherever reservations are already provided in the matter of promotion — be it Central Services or State Services, or for that matter services under any corporation, authority or body falling under the definition of 'State' in Article 12 — such reservations shall continue in operation for a period of five years from this day. Within this period, it would be open to the appropriate authorities to revise, modify or re-issue the relevant Rules to ensure the achievement of the objective of Article 16(4). If any authority thinks that for ensuring adequate representation of 'backward class of citizens' in any service, class or category, it is necessary to provide for direct recruitment therein, it shall be open to it to do so".

91 79

16. We do not agree with the respondent's submission. The **Indra Sawhney** ruling arose in the context of reservations in favour of backward classes of citizens falling within the sweep of Article 16(4).

17. Backward classes contemplated under Article 16(4) are the socially and educationally backward classes of citizens. In **Devadasan**⁹, it was held by this Court that Article 16(4) is an exception to the principle contained in Article 16(1). However, Subba Rao, J., in his dissent opined that Article 16(4) is not an exception to Article 16(1) but an emphatic way of expressing the principle inherent in Article 16(1). This dissenting opinion later found approval in the majority decision in **State of Kerala v. N.M. Thomas**, (1976) 2 SCC 310. Finally, in **Indra Sawhney**, a 9-judge Bench by majority (speaking through Jeevan Reddy, J.) confirmed that Article 16(4) is not an exception to the Rule in Article 16(1) but it is an "instance of (such) classification"¹⁰

⁹ T. Devadasan v. Union of India and Anr., AIR 1964 SC 179

¹⁰ Indra Sawhney's case.

Para 741. ... We too believe that Article 16(1) does permit reasonable classification for ensuring attainment of the equality of opportunity assured by it. For assuring equality of opportunity, it may well be necessary in certain situations to treat unequally situated persons unequally. Not doing so, would perpetuate and accentuate inequality. Article 16(4) is an instance of such classification, put in to place the matter beyond controversy. The "backward class of citizens" are classified as a separate category deserving a special treatment in the nature of reservation of appointments/posts in the services of the State. Accordingly, we hold that Clause (4) of Article 16 is not exception to Clause (1) of Article 16. It is an instance of classification implicit in and permitted by clause (1). ... It is a provision which must be read along with and in harmony with clause (1). Indeed, even without Clause (4), it would have been permissible for the State to have evolved such a classification and made a provision for reservation of appointments/posts in their favour. Clause (4) merely puts the matter beyond any doubt in specific terms.

A Constitution Bench of this Court in **M. Nagaraj & Ors. v. Union of India & Ors.** (2006) 5 SCC 212 reiterated the position in **Indra Sawhney**. See Para 112.

(92) (80)

18. The principle is that the State shall not discriminate (which normally includes preference) on the basis of any one of the factors mentioned in Article 16(1). Though under the doctrine of "reasonable classification", it has always been held that State can identify classes of people who have distinct characteristics or disadvantages and treat them separately under law. Having regard to the history, the social and demographic context of our nation, the Constitution framers thought it appropriate to enable the State under Article 16(4) to identify citizens for preferential treatment for the purpose of employment under the State.

19. This Court in **Indra Sawhney** was dealing with the action of the State in providing reservation in employment under the State to various classes of citizens, identified by the State to be backward classes. The process of such identification and the nature and extent of reservations that could be provided under Article 16(4) were the main issues before this Court. It is in this context, this Court held that reservation in the context of promotions to higher posts under the State are constitutionally impermissible.

20. To remove the basis of the rule propounded in **Indra Sawhney case**, Parliament enacted the Constitution

(43) (81)

(Seventy-Seventh Amendment) Act, 1995. By inserting Article 16(4A), an exception is created in favour of citizens belonging to the Scheduled Castes and the Scheduled Tribes, from the rule laid down in **Indra Sawhney**.

21. The principle laid down in **Indra Sawhney** is applicable only when the State seeks to give preferential treatment in the matter of employment under State to certain classes of citizens identified to be a backward class. Article 16(4) does not disable the State from providing differential treatment (reservations) to other classes of citizens under Article 16(1)¹¹ if they otherwise deserve such treatment. However, for creating such preferential treatment under law, consistent with the mandate of Article 16(1), the State cannot choose any one of the factors such as caste, religion etc. mentioned in Article 16(1) as the basis. The basis for providing reservation for PWD is physical disability and not any of the criteria forbidden under Article 16(1). Therefore, the rule of no reservation in promotions as laid down in **Indra Sawhney** has clearly and normatively no application to the PWD.

22. The 1995 Act was enacted to fulfill India's obligations under the 'Proclamation on the Full Participation and Equality of the People with Disabilities in the Asia and Pacific Region'. The objective

¹¹ As per the *Indra Sawhney* case, Article 16(4) is a subset of Article 16(1).

94 82

behind the 1995 Act is to integrate PWD into the society and to ensure their economic progress.¹² The intent is to turn PWD into 'agents of their own destiny'.¹³ PWD are not and cannot be equated with backward classes contemplated under Article 16(4). May be, certain factors are common to both backward classes and PWD such as social attitudes and historical neglect etc.

23. It is disheartening to note that (admittedly) low numbers of PWD (much below three per cent) are in government employment long years after the 1995 Act. Barriers to their entry must, therefore, be scrutinized by rigorous standards within the legal framework of the 1995 Act.

24. A combined reading of Sections 32 and 33 of the 1995 Act explicates a fine and designed balance between requirements of administration and the imperative to provide greater opportunities to PWD. Therefore, as detailed in the first part of our analysis, the identification exercise under Section 32 is crucial. Once a post is identified, it means that a PWD is fully capable of discharging the functions associated with the identified post. Once found to be so capable, reservation under Section 33 to an extent of not less than three per cent *must* follow. Once the post is identified, it must be

¹² See Para 3, 4 and 5 of the Proclamation of the Full Participation and Equality of the People with Disabilities in the Asia and Pacific Region.

¹³ *Id* at Para 2.

(45) (83)

reserved for PWD irrespective of the mode of recruitment adopted by the State for filling up of the said post.

25. In light of the preceding analysis, we declare the impugned memoranda as illegal and inconsistent with the 1995 Act. We further direct the Government to extend three percent reservation to PWD in all IDENTIFIED POSTS in Group A and Group B, irrespective of the mode of filling up of such posts. This writ petition is accordingly allowed.

CIVIL APPEAL NO. 5389 OF 2016

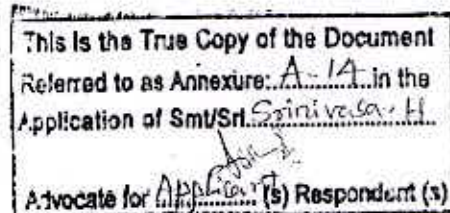
(Arising out of SLP (C) No.244 of 2016)

In view of our decision in Writ Petition (Civil) No.521 of 2008, this Civil Appeal is also disposed of, with no order as to costs.

.....J.
(J. Chelameswar)

.....J.
(Abhay Manohar Sapre)

New Delhi;
June 30, 2016.



(46) (84)

ANNEXURE - H

REPORTABLE

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

CIVIL APPEAL NO. 1567 OF 2017

SIDDARAJU

Appellant(s)

VERSUS

STATE OF KARNATAKA & ORS.

Respondent(s)

WITH

REVIEW PETITION (C) NO. 36 OF 2017

IN

CIVIL APPEAL NO. 5389 OF 2016

CIVIL APPEAL NO. 300 OF 2020

(Arising out of SLP (C) No. 11632 of 2017)

CIVIL APPEAL NO. 299 2020

(Arising out of SLP (C) No. 21197 of 2017)

CIVIL APPEAL NO. 310 2020

(Arising out of SLP (C) No. 4650 of 2019)

CIVIL APPEAL NO. 6092 OF 2019

CIVIL APPEAL NO. 6095 OF 2019

J U D G M E N T

R.F. Nariman, J.

1) This batch of cases before the Court has come to us on a reference made by a Division Bench of this Court dated 03.02.2017. The reference order reads as follows:

"Delay condoned. Leave granted."

85 97 2

Question which has arisen in this case is whether persons, governed under "The persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995", can be given reservation in promotion. A view has been taken by this Court in Rajiv Kumar Gupta & Others v. Union of India & Others - (2016) 6 SCALE 417 in the affirmative.

Mr. Ranjit Kumar, learned Solicitor General, points out that the prohibition against reservation in promotion laid down by the majority in Indra Sawhney & Others v. Union of India & Others - (1992) Supp. 3 SCC 215 applies not only to Article 16(4) but also 16(1) of the Constitution of India and inference to the contrary is not justified.

Persons suffering from disability certainly require preferential treatment and such preferential treatment may also cover reservation in appointment but not reservation in promotion. Section 33 of the 1995 Act is required to be read and construed in that background.

We find merit in the contention that the matter needs to be considered by the larger Bench.

Accordingly, we direct the matter be placed before Hon'ble the Chief Justice for appropriate orders.

Union of India is at liberty to file its affidavit within one week from today."

- 2) Parliament passed the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 being Act 1 of 1996. The statement of objects and reasons for the said Act states that a Conference held at Beijing, China, in December, 1992 had adopted the Proclamation on the Full Participation and Equality of People with Disabilities in the Asia and the Pacific region India being a signatory to the said proclamation found it

48 86

necessary to enact a suitable legislation to provide for the special care that is necessary to remove discrimination against persons with disabilities and to make special provision for the integration of such persons into the social mainstream.

3) Section 2(i) of the said Act defines "disability" as follows:-

"(i) "disability" means-

- (i) blindness;
- (ii) low vision;
- (iii) leprosy-cured;
- (iv) hearing impairment;
- (v) locomotor disability;
- (vi) mental retardation;
- (viii) mental illness;"

Section 2(t) defines "person with disability" as follows:-

"(t) "person with disability" means a person suffering from not less than forty per cent of any disability as certified by a medical authority;"

4) The Act then provides for Central and State Co-ordination Committees and prevention and early detection of disabilities. We are directly concerned with Chapter VI of the Act which deals with identification and reservation of posts for the purpose of employment. These Sections state as follows:-

"32. Identification of posts which can be reserved for persons with disabilities.-
Appropriate Governments shall-

- (a) identify posts, in the establishments, which can be reserved for the persons with disability;
- (b) at periodical intervals not exceeding three years, review the list of posts identified and

(87) (94)

4

up- date the list taking into consideration the developments in technology.

33. Reservation of posts.- Every appropriate Government shall appoint in every establishment such percentage of vacancies not less than three per cent for persons or class of persons with disability of which one per cent each shall be reserved for persons suffering from-

- (i) blindness or low vision;
- (ii) hearing impairment;
- (iii) locomotor disability or cerebral palsy,

in the posts identified for each disability:

Provided that the appropriate Government may, having regard to the type of work carried on in any department or establishment, by notification subject to such conditions, if any, as may be specified in such notification, exempt any establishment from the provisions of this section."

5) In Union of India and Another vs. National Federation of the Blind and Others, (2013) 10 SCC 772, this Court went into the provisions of the aforesaid Act in some detail and, in particular, Sections 32 and 33. The Court considered Office Memorandum dated 29.12.2005 of the Government of India, which stated that the quantum of reservation would be as follows:-

"2. QUANTUM OF RESERVATION

(i) Three percent of the vacancies in case of direct recruitment to Group A, B, C and D posts shall be reserved for persons with disabilities of which one per cent each shall be reserved for persons suffering from (i) blindness or low vision, (ii) hearing impairment and (iii) locomotor disability or cerebral palsy in the posts identified for each disability;

(ii) Three percent of the vacancies in case of promotion to Group D, and Group C posts in which the element of direct recruitment, if any, does

400 88

5

not exceed 75%, shall be reserved for persons with disabilities of which one per cent each shall be reserved for persons suffering from (i) blindness or low vision, (ii) hearing impairment and (iii) locomotor disability or cerebral palsy in the posts identified for each disability.

The Court then held as follows:

"39) It has also been submitted on behalf of the appellants herein that since reservation of persons with disabilities in Group C and D has been in force prior to the enactment and is being made against the total number of vacancies in the cadre strength according to the OM dated 29.12.2005 but the actual import of Section 33 is that it has to be computed against identified posts only. This argument is also completely misconceived in view of the plain language of the said Section, as deliberated above. Even for the sake of argument, if we accept that the computation of reservation in respect of Group C and D posts is against the total vacancies in the cadre strength because of the applicability of the scheme of reservation in Group C and D posts prior to enactment, Section 33 does not distinguish the manner of computation of reservation between Group A and B posts or Group C and D posts respectively. As such, one statutory provision cannot be interpreted and applied differently for the same subject-matter.

40) Further, if we accept the interpretation contended by the appellants that computation of reservation has to be against the identified posts only, it would result into uncertainty of the application of the scheme of reservation because experience has shown that identification has never been uniform between the Centre and the States and even between the Departments of any Government. For example, while a post of middle school teacher has been notified as identified as suitable for the blind and low vision by the Central Government, it has not been identified as suitable for the blind and low vision in some States such as Gujarat and J&K, etc. This has led to a series of litigations which have been pending in various High Courts. In addition, Para 4 of the OM dated 29.12.2005 dealing with the issue of

89

401

identification of jobs/posts in sub clause (b) states that list of the jobs/posts notified by the Ministry of Social Justice & Empowerment is not exhaustive which further makes the computation of reservation uncertain and arbitrary in the event of acceptance of the contention raised by the appellants.

42) A perusal of Indra Sawhney would reveal that the ceiling of 50% reservation applies only to reservation in favour of other Backward classes under Article 16(4) of the Constitution of India whereas the reservation in favour of persons with disabilities is horizontal, which is under Article 16(1) of the Constitution. In fact, this Court in the said pronouncement has used the example of 3% reservation in favour of persons with disabilities while dealing with the rule of 50% ceiling. Para 812 of the judgment clearly brings out that after selection and appointment of candidates under reservation for persons with disabilities they will be placed in the respective rosters of reserved category or open category respectively on the basis of the category to which they belong and, thus, the reservation for persons with disabilities per se has nothing to do with the ceiling of 50%. Para 812 is reproduced as follows:-

"812.all reservations are not of the same nature. There are two types of reservations, which may, for the sake of convenience, be referred to as 'vertical reservations' and 'horizontal reservations'. The reservations in favour of Scheduled Castes, the Scheduled Tribes and the other backward classes [under Article 16(4)] may be called vertical reservations whereas reservations in favour of physically handicapped [under Clause (1) of Article 16] can be referred to as horizontal reservations. Horizontal reservations cut across the vertical reservations - what is called inter-locking reservations. To be more precise, suppose 3% of the vacancies are reserved in favour of physically handicapped persons; this would be a reservation relatable to Clause (1) of Article 16. The persons selected against this quota will be placed in the appropriate category; if he belongs to S.C. category he will be placed in that quota by making necessary adjustments; similarly, if he belongs to open competition (O.C.) category, he will be placed in that category by making necessary

402 (90)

7

adjustments. Even after providing for these horizontal reservations, the percentage of reservations in favour of backward class of citizens remains - and should remain - the same....."

Having concluded thus, the Court then held:

"50) Employment is a key factor in the empowerment and inclusion of people with disabilities. It is an alarming reality that the disabled people are out of job not because their disability comes in the way of their functioning rather it is social and practical barriers that prevent them from joining the workforce. As a result, many disabled people live in poverty and in deplorable conditions. They are denied the right to make a useful contribution to their own lives and to the lives of their families and community.

51) The Union of India, the State Governments as well as the Union Territories have a categorical obligation under the Constitution of India and under various International treaties relating to human rights in general and treaties for disabled persons in particular, to protect the rights of disabled persons. Even though the Act was enacted way back in 1995, the disabled people have failed to get required benefit until today.

52) Thus, after thoughtful consideration, we are of the view that the computation of reservation for persons with disabilities has to be computed in case of Group A, B, C and D posts in an identical manner viz., "computing 3% reservation on total number of vacancies in the cadre strength" which is the intention of the legislature. Accordingly, certain clauses in the OM dated 29.12.2005, which are contrary to the above reasoning are struck down and we direct the appropriate Government to issue new Office Memorandum(s) consistent with the decision rendered by this Court.

53) Further, the reservation for persons with disabilities has nothing to do with the ceiling of 50% and hence, *Indra Sawhney* is not applicable with respect to the disabled persons."

6) Certain directions were then made in the end of the judgment to ensure proper implementation of the reservation

(91)

(103)

policy for the disabled and to protect their rights.

7) We may mention that, pursuant to this Court's judgment, the Union of India issued Office Memorandum dated 03.12.2013 in which it made only one change in the Office Memorandum dated 29.12.2015 as follows:-

"5. Keeping in view the directions of the Hon'ble Supreme Court, Para 14 of the OM dated 29.12.2005 is modified to the following extent:

"Reservation for persons with disabilities in Group 'A' or Group 'B' posts shall be computed on the basis of total number of vacancies occurring in direct recruitment quota in all the Group 'A' posts or Group 'B' posts respectively, in the cadre."

Contempt petitions were filed stating that the directions contained in this judgment have not been carried out, which is not the subject-matter before us. These petitions have been ordered to be listed after the decision in these cases.

8) The next important judgment that needs to be adverted to in this behalf is the judgment in National Federation of the Blind vs. Sanjay Kothari, Secy. Deptt. of Personnel and Training, 2015 (9) Scale 611, in para 10 of which para 51 of the earlier judgment was clarified as follows:-

"10. Para 51 of the order on which reliance has been placed by Shri Rungta must be viewed in the context of the questions arising for answer before the Court i.e. the manner of computation of vacancies in case of Groups A, B, C and D posts. All that the Court in the aforesaid paragraph 51 has held is that the manner of such identification must be uniform in the case of all the groups viz. A, B, C and D. Nothing beyond the above should be read in paragraph 51 of the Courts' order as aforesaid."

104 92

9

9) We now come to the Division Bench judgment of this Court reported as Rajeev Kumar Gupta & Others v. Union of India & Others - (2016) 13 SCC 153. In this judgment, the posts in Prasar Bharati were classified into four Groups-A to D. The precise question that arose before the Court is set out in para 5 thereof in which it is stated that the statutory benefit of 3 per cent reservation in favour of those who are disabled is denied insofar as identified posts in Groups A and B are concerned, since these posts are to be filled through direct recruitment. After noticing the arguments based on the nine-Judge bench in Indra Sawhney vs. Union of India, 1992 Supp (3) SCC 217, this Court held:

"14. We now examine the applicability of the prohibition on reservation in promotions as propounded by Indra Sawhney. Prior to Indra Sawhney, reservation in promotions were permitted under law as interpreted by this Court in Southern Railway v. Rangachari, AIR 1962 SC 36. Indra Sawhney specifically overruled Rangachari to the extent that reservations in promotions were held in Rangachari to be permitted under Article 16(4) of the Constitution. Indra Sawhney specifically addressed the question whether reservations could be permitted in matters of promotion under Article 16(4). The majority held that reservations in promotion are not permitted under our constitutional scheme.

15. The respondent argued that the answer to Question 7 in Indra Sawhney squarely covers the situation on hand and the reasons outlined by the majority opinion in Indra Sawhney at para 828 must also apply to bar reservation in promotions to identified posts of Group A and Group B.

16. We do not agree with the respondent's submission. Indra Sawhney ruling arose in the context of reservations in favour of backward

93

405

classes of citizens falling within the sweep of Article 16(4).

xxx xxx

21. The principle laid down in *Indra Sawhney* is applicable only when the State seeks to give preferential treatment in the matter of employment under the State to certain classes of citizens identified to be a backward class. Article 16(4) does not disable the State from providing differential treatment (reservations) to other classes of citizens under Article 16(1) if they otherwise deserve such treatment. However, for creating such preferential treatment under law, consistent with the mandate of Article 16(1), the State cannot choose any one of the factors such as caste, religion, etc. mentioned in Article 16(1) as the basis. The basis for providing reservation for PWD is physical disability and not any of the criteria forbidden under Article 16(1). Therefore, the rule of no reservation in promotions as laid down in *Indra Sawhney* has clearly and normatively no application to PWD.

The Court then concluded:

24. A combined reading of Sections 32 and 33 of the 1995 Act explicates a fine and designed balance between requirements of administration and the imperative to provide greater opportunities to PWD. Therefore, as detailed in the first part of our analysis, the identification exercise under Section 32 is crucial. Once a post is identified, it means that a PWD is fully capable of discharging the functions associated with the identified post. Once found to be so capable, reservation under Section 33 to an extent of not less than three per cent must follow. Once the post is identified, it must be reserved for PWD irrespective of the mode of recruitment adopted by the State for filling up of the said post.

25. In light of the preceding analysis, we declare the impugned memoranda as illegal and inconsistent with the 1995 Act. We further direct the Government to extend three percent reservation to PWD in all identified posts in Group A and Group B, irrespective of the mode of filling up of such posts. This writ petition is accordingly allowed."

10) After hearing learned counsel appearing on behalf of all the parties including the learned Additional Solicitor General, we are of the view that the judgment of this Court cannot be faulted when it stated that *Indra Sawhney* dealt with a different problem and, therefore, cannot be followed.

11) We may also note that review petitions were filed and have since been dismissed against both the 2013 and 2016 judgments. Consequently, the reference stands answered by stating that the 2013 judgment as clarified in National Federation of the Blind vs. Sanjay Kothari, Secy. Deptt. of Personnel and Training, 2015 (9) Scale 611 and the judgment in Rajeev Kumar Gupta & Others v. Union of India & Others - (2016) 13 SCC 153 case will bind the Union and the State Governments and must be strictly followed notwithstanding the Office Memorandum dated 29.12.2005, in particular. Since the reference has been disposed of by us today, contempt petitions be listed for hearing.

Civil Appeal No. 1567 OF 2017:

12) Application for impleadment in C.A. 1567/2017 is allowed.

13) This matter arises out of the order of the Central Administrative Tribunal, Bangalore Bench, Bangalore dated 24.07.2015 in which the 2005 O.M has been followed without reference to any of the judgments of this Court. A writ petition from the aforesaid judgment was dismissed by the Karnataka High Court on 23.03.2016, stating that the precise

(95) (107)

12

question of law that arises in this case was kept open. Accordingly, we set aside the judgment of the CAT and consequently that of the High Court. The case is to be governed by the three decisions of this Court outlined above, which judgments have to be followed by the Union of India and the States. It is not necessary to pass any further directions. The appeal is disposed of accordingly.

Review Petition (C) No. 36 OF 2017 in Civil Appeal No. 5389 of 2016:

- 14) Delay is condoned.
- 15) This matter stands dismissed in view of today's judgment.

SLP (C) No. 11632 of 2017:

- 16) Leave granted.
 - 17) The impugned judgment of the High Court dated 22.06.2016 in this appeal, after referring to the judgment of this Court in National Federation of the Blind vs. Sanjay Kothari, Secy. Deptt. of Personnel and Training, 2015
- (9) Scale 611 arrived at the following conclusion:

"8. The contention of the learned Attorney General was that except for sub-section 2 of Section 47, there was no other provision under the Disabilities Act dealing with the promotions and, therefore, on the strength of sub-section 2 of Section 47 of the Disabilities Act, it cannot be contended that the Act provides for reservation in the matter of promotion. In paragraphs 9 and 10 of the judgment and order dated 1st September, 2015, the Apex Court has dealt with issue of reservation in promotion. In paragraph 10 of the judgment and order dated 1st September,

2015, the Apex Court has explained paragraph 51 of the earlier judgment and order dated 8th October, 2013 by observing that what is observed in paragraph 51 is about the manner of computation of vacancies in case of all the Groups viz. A, B, C and D posts. That is the reason why the Apex Court declined to initiate any action for contempt on the basis of allegations that there is no provision made for the reservation of persons with disabilities in promotion. In terms the Apex Court observed that what is held in paragraph 51 of the judgment and order dated 8th October, 2013 cannot be construed to mean that there is a direction issued to provide for the reservation for the persons with disabilities even in the promotional posts.

9. In view of the clarification issued by the Apex Court under the order dated 1st September, 2015 in Contempt Petition (Civil) No. 499 of 2014, now the directions contained in paragraph 13 of the judgment and order dated 4th December, 2013 cannot be implemented insofar as the same deal with giving benefit of reservation to the persons with disabilities in the matter of promotion to the posts in the Indian Administrative Service by applying the Office Memorandum dated 29th December, 2005."

Consequently, the High Court held that no action can be initiated in the contempt petition on the ground that reservation had not been provided in the matter of promotion. We may hasten to add that this is not a correct reading of the law laid down by this Court. National Federation of the Blind vs. Sanjay Kothari, Secy. Deptt. of Personnel and Training, 2015 (9) Scale 611 was a judgment in a contempt petition in which the contention taken up by the petitioner was repelled by stating that para 51 of the 2013 judgment has held that the manner of identification of posts of all groups must be uniform and nothing beyond. After the

97 109

declaration of the law in Rajeev Kumar Gupta & Others v. Union of India & Others - (2016) 13 SCC 153 it is now clear beyond doubt that the O.M. of 2005 cannot be given effect to when it is in the teeth of the 2016 judgment. On the basis of this judgment, the impugned judgment is set aside and the contempt petition is restored to the file. The petition be disposed of on merits. The appeal is disposed of accordingly.

SLP (C) No. 21197 of 2017:

18) Leave granted.

19) In view of our judgment today, the appeal is dismissed.

SLP (C) No. 4650 of 2019:

20) Leave granted.

21) Having heard learned senior counsel for the appellant at some length, we may note that paragraph 4(c) of the counter affidavit states as follows:

"(C) That Chhattisgarh State Power Holding Company Ltd. has appointed a committee for identification of the post upon which reservation in promotion will be applicable. The said Committee in its meeting held on 10.01.2017 decided that the post of Executive Engineer, Mechanical and Electrical in transmission, distribution and generation companies where the Executive Engineer has to visit sites and perform various acts personally, it is not advisable to keep such post under reservation. However, reservation will be applicable in promotion to the post of Executive Engineer, Computer Science, Information & Technology and Civil Engineering. The said decision of the company has not been challenged till date and thus binding on all the employees as per the provisions of Rights of Persons with Disabilities Act, 2016. On this ground also the Special Leave Petition filed by the Petitioner is not maintainable."

410

98

15

22) It is clear that the Internal Committee of respondent No. 2 has applied its mind to the post of Executive Engineer, Mechanical and Electrical, and has opined that in the said post, reservation for the physically disabled will not be possible for the reason given therein.

23) Learned senior counsel appearing on behalf of the appellant has pointed out that as per the Gazette Notification dated 31.05.2001, it is an Expert Committee that has to identify, keeping in view the provisions of the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995, and Section 32 in particular, suitable posts for persons with disabilities, and this has not been done in the present case. Since this point has not been argued in any of the cross appeals, we reserve liberty to the appellant to challenge the Internal Committee's findings on grounds available to them in law. Apart from this, the impugned judgment does not call for interference. The appeal is disposed of accordingly.

24) Needless to add if such a challenge succeeds, the three judgments pointed out by us in the Judgment in the lead matter, i.e., Civil Appeal No. 1567 of 2017 will have to be applied and followed.

Civil Appeal No. 6092 of 2019:

25) The appeal is dismissed in accordance with today's judgment. Interim order dated 08.07.2019 stands vacated.

99

111
15

It has been contended before us that there are only 2 Group 'A' posts available/identified as a result of which the reservation will have to be worked in accordance with the roster system. We may only clarify that we have not, in any manner, indicated as to how such system should be worked.

Civil Appeal No. 6095 of 2019:

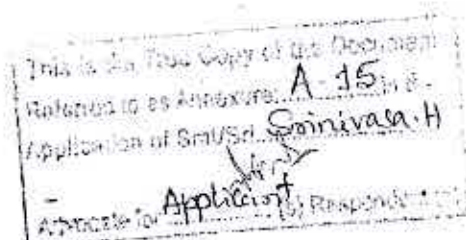
26) The appeal is dismissed in view of today's judgment.

..... J.
(ROHINTON FALI NARIMAN)

..... J.
(ANIRUDDHA BOSE)

..... J.
(V. RAMASUBRAMANIAN)

New Delhi;
January 14-15, 2020.



IN THE SUPREME COURT OF INDIA
CIVIL APPELLATE JURISDICTION
CIVIL APPEAL NO. 59 OF 2021

THE STATE OF KERALA & ORS. ...

APPELLANT(S)

VERSUS

LEESAMMA JOSEPH

RESPONDENT

J U D G M E N T

SANJAY KISHAN KAUL, J.

1. The international awakening to further the rights and equal opportunities to persons with special abilities (hereinafter referred to as 'PWD') propelled the adoption of the Proclamation on the Full Participation and Equality of People with Disabilities in the Asian and Pacific Region in the meeting of the member states of the Economic and Social Commission for Asia and the Pacific held in Beijing in December, 1992; to which India was a signatory. In furtherance of its international commitments, The Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 (hereinafter referred to as "the 1995 Act") was enacted which came into force on 7th February, 1996. In 2007, India ratified the United Nations Convention on the Rights of Persons with Disabilities (UNCRPD). In pursuance to the debates in the Standing Committee of the Parliament, The Rights of Persons with

Disabilities Act, 2016 (hereinafter referred to as "the 2016 Act") replaced the 1995 Act.

2. The issue debated before us in the present proceedings is the right of promotion under the 1995 Act, as claimed by the respondent, in which she succeeded before the High Court of Kerala in terms of the impugned order dated 9th March, 2020. The respondent did not succeed in a claim before the Kerala Administrative Tribunal which dismissed her application by order dated 27th February, 2015 but the said judgment was set aside by the impugned order.

3. On 7th January, 2021, we had noted the submission of learned counsel for the appellants that the respondent was given employment on compassionate ground and thus the entry point was not of a person with disability under the 1995 Act. In view thereof, a submission was made that such a person cannot claim reservation in matters of promotion as it will affect the other general candidates. We were of the view that the issue required examination, but since the respondent had retired and it was only the issue of her financial benefits, we declined to interfere with the relief granted by the High Court vide the impugned order. Thus, no notice was required to be issued to the respondent. Leave was granted to examine the legal issue and we appointed Mr. Gaurav Agrawal as *Amicus Curiae* to assist the Court, since the respondent would be unrepresented before us.

4. The facts relating to the respondent are not really necessary to be recorded in detail, except to note that she was appointed in 1996 to the post of Typist/clerk in the Police Department on compassionate grounds, after her brother had passed away during service. She undisputedly

suffered from Post Polio Residual Paralysis (L) Lower Limb and her permanent disability had been assessed at 55%. The respondent subsequently cleared all departmental tests for promotion, and was test qualified in December, 1998. She was given a category change to Lower Division clerk in July, 2001 without losing her seniority and later on promoted as Senior Clerk (equivalent to Upper Division Clerk) on 16th September, 2004, based on the seniority list of test qualified LDCs. She was thereafter promoted to the post of a Cashier on 5th May, 2015. The issue which had been raised by the respondent was that she was entitled to promotion as a Senior Clerk with effect from 1st July, 2002 with all consequential benefits and as a Cashier with effect from 20th May, 2012 with all consequential benefits and thereafter as Junior Superintendent with effect from the date of her entitlement. This plea was predicated on reservation in matters of promotion which she sought under the 1995 Act as she suffered from physical disability.

VIEW OF THE TRIBUNAL

5. The aspect of employment under the 1995 Act has been dealt with in Chapter VI. Section 32 mandates identification of posts which can be reserved for persons with disabilities (PwD) while Section 33 provides for reservation of posts. The provisions read as under:

"32. Identification of posts which can be reserved for persons with disabilities.- Appropriate Governments shall-

- (a) identify posts, in the establishments, which can be reserved for the persons with disability;
- (b) at periodical intervals not exceeding three years, review the list of posts identified and update the list taking into consideration the developments in technology.

33. Reservation of posts.- Every appropriate Government shall appoint in every establishment such percentage of vacancies not less than three per cent for persons or class of

persons with disability of which one per cent each shall be reserved for persons suffering from-

- (i) blindness of low vision;
- (ii) hearing impairment;
- (iii) locomotor disability or cerebral palsy,

in the posts identified for each disability:

Provided that the appropriate Government may, having regard to the type of work carried on in any department or establishment, by notification subject to such conditions, if any, as may be specified in such notification, exempt any establishment from the provisions of this section."

6. On a reading of Section 33, the Tribunal observed that it only provided for reservation of not less than 3% for persons or class of PwD but did not provide for reservation in promotion. Section 32 mandating identification of posts was noticed by the Tribunal and the government order issued thereunder limited the reservation only in matters of direct recruitment through the Public Service Commission. The Promotion was once again an aspect not provided for.

7. The Tribunal took into account the judgment of this Court in **Union of India vs. National Federation of the Blind**¹ to opine that the issue dealt with thereunder was whether 3% reservation was to be applied in reference to vacancies in a particular post arising from time to time, or the cadre strength of that post. In that context, it was opined by this Court that reservation was to be applied with reference to vacancies. The absence of any observations regarding reservation in promotion was noticed. The judgment of the Bombay High Court in **National Confederation for Development of Disabled and Anr. vs. Union of India and Ors.**² which directed benefit of reservation in matters of promotion was also examined; but it was opined that the rules of

¹ (2013) 10 SCC 772.

² 2015 SCC OnLine Bom 5112.

Recruitment in the State of Kerala, General Rules and other orders issued by the Government under Section 32 of the 1995 Act did not provide for any reservation in promotions. Thus, the application before the Tribunal was dismissed.

VIEW OF THE KERALA HIGH COURT

8. The High Court succinctly set forth a question of law as to whether persons having physical disability could be granted reservation in promotion. In this regard, the judgment of this Court delivered subsequently in **Rajeev Kumar Gupta and Others vs. Union of India and Ors.**³ was taken note of to the effect that reservation would be applicable even in promotion. Another Bench of this Court had referred the matter to a larger Bench in this behalf on the question of whether the dicta would go against the decision in **Indra Sawhney and Ors. vs. Union of India and Ors.**⁴ The matter was resolved in **Siddaraju vs. State of Karnataka & Ors.**⁵ wherein it was affirmed that such reservation was applicable in promotions and the ratio of **Indra Sawhney's case (supra)** was distinguished. The High Court thus set aside the order of the Tribunal and granted relief to the respondent.

CASE OF THE APPELLANTS

9. A threefold submission was made before us on behalf of the Appellant-State:

3 (2016) 13 SCC 153.

4 1992 Supp (3) SCC 217.

5 2020 3 SCALE 99.

(105)

- a. In **Siddaraju's case** (supra) it was opined that Sections 32 and 33 of the 1995 Act mandated that 3-4 per cent of the posts identified by the government were to be reserved for appointment of persons suffering from physical disabilities. It was pleaded that this cannot be interpreted to mean that such a reservation would extend even to promotions.
- b. Though undoubtedly the respondent suffered from physical disability, she was not appointed through a recruitment process under the 1995 Act, but was appointed on compassionate grounds on the demise of her brother- a different channel of recruitment. It was thus submitted that she could not claim any right to reservation in promotion under the 1995 Act.
- c. The government had issued several orders providing 3-4 per cent reservation as per the 1995 Act in matters of appointment.

SUBMISSIONS OF THE AMICUS CURIAE

10. Mr. Gaurav Agrawal, learned Amicus Curiae, took us through the conspectus of the legal pronouncements dealing with the aspect of reservation in promotion under the 1995 Act, and the consequences of the repeal of that Act on the enactment of 2016 Act. In this behalf, we may note that the State Government, on perusal of the written note of arguments of the learned Amicus Curiae, sought to draw our attention to the factum of filing of MA No. 2171/2020 for clarification of the judgment in **Siddaraju's case** (supra) and pleaded for the result of the application to be awaited. However, on the other hand, the learned Amicus Curiae submitted that he had examined the record of that case and the issue involved therein is not concerned with the issue arising in

the present case. We may note Section 34 of the 2016 Act which reads as under:

34. Reservation.—(1) Every appropriate Government shall appoint in every Government establishment, not less than four per cent. of the total number of vacancies in the cadre strength in each group of posts meant to be filled with persons with benchmark disabilities of which, one per cent. each shall be reserved for persons with benchmark disabilities under clauses (a), (b) and (c) and one per cent. for persons with benchmark disabilities under clauses (d) and (e), namely:—

(a) blindness and low vision;

(b) deaf and hard of hearing;

(c) locomotor disability including cerebral palsy, leprosy cured, dwarfism, acid attack victims and muscular dystrophy;

(d) autism, intellectual disability, specific learning disability and mental illness;

(e) multiple disabilities from amongst persons under clauses (a) to (d) including deaf-blindness in the posts identified for each disabilities;

Provided that the reservation in promotion shall be in accordance with such instructions as are issued by the appropriate Government from time to time.

Provided further that the appropriate Government, in consultation with the Chief Commissioner or the State Commissioner, as the case may be, may, having regard to the type of work carried out in any Government establishment, by notification and subject to such conditions, if any, as may be specified in such notifications exempt any Government establishment from the provisions of this section.

(2) Where in any recruitment year any vacancy cannot be filled up due to non-availability of a suitable person with benchmark disability or for any other sufficient reasons, such vacancy shall be carried forward in the succeeding recruitment year and if in the succeeding recruitment year also suitable person with benchmark disability is not available, it may first be filled by interchange among the five categories and only when there is no person with disability available for the post in that year, the employer shall fill up the vacancy by appointment of a person, other than a person with disability;

Provided that if the nature of vacancies in an establishment is such that a given category of person

cannot be employed, the vacancies may be interchanged among the five categories with the prior approval of the appropriate Government.

(3) The appropriate Government may, by notification, provide for such relaxation of upper age limit for employment of persons with benchmark disability, as it thinks fit."

11. The material aspect is the proviso inserted stipulating that reservations in promotions shall be in accordance with such instructions as are issued by the appropriate government from time to time. M.A. No. 2171/2020 has been filed for clarification in view of the proviso, seeking the view of the Court as to how that would operate and from which date. The erstwhile Section 33 of the 1995 Act did not have such a provision. The reason why this clarification was not relevant was noted by us on 24th March, 2021. It was explained that since the present case was admittedly governed by the provisions of 1995 Act; and the main issue arising for consideration is whether the respondent having been given employment on compassionate grounds and not having entered service under the 1995 Act, was entitled to claim promotion under that Act. The plea of the State was that since the rules of the appellant-State did not provide for any reservation in promotion to people who are governed by the 1995 Act, the same was not permissible.

12. Mr. Gaurav Agrawal, learned *Amicus Curiae*, submitted an exhaustive written note setting forth the judicial pronouncements and set out four issues which would arise for consideration. We now proceed to discuss each of the four aspects hereinafter:

I. Whether the 1995 Act mandates reservations in promotions for persons with disabilities?

13. A broad aspect sought to be submitted before us is that Sections 32 and 33 of the 1995 Act had to be interpreted in juxtaposition and consonance with Section 47 of that Act which reads as under:

"47. Non-discrimination in Government employment. —

(1) No establishment shall dispense with, or reduce in rank, an employee who acquires a disability during his service:

Provided that, if an employee, after acquiring disability is not suitable for the post he was holding, could be shifted to some other post with the same pay scale and service benefits:

Provided further that if it is not possible to adjust the employee against any post, he may be kept on a supernumerary post until a suitable post is available or he attains the age of superannuation, whichever is earlier.

(2) No promotion shall be denied to a person merely on the ground of his disability:

Provided that the appropriate Government may, having regard to the type of work carried on in any establishment, by notification and subject to such conditions, if any, as may be specified in such notification, exempt any establishment from the provisions of this section."

14. The legislative mandate has to be understood in the aforesaid context as it provides for equal opportunity for career progression, including promotion. Thus, it would be negation of the legislative mandate if promotion is denied to PwD and such reservation is confined to the initial stage of induction in service. This would in fact result in stagnation of the disabled in a consequential frustration.⁶

15. The operation of reservation and the computation has to be made with reference to the total number of vacancies in the cadre strength and

⁶ This was held in *Viklang Sang Haryana vs. State of Haryana*, 2011 SCC OnLine P&H 4266 as the State of Haryana did not provide for reservation in promotion to PwD in Class III and IV posts.

(109)

no distinction should be made between posts to be filled by direct recruitment and by promotion.

16. The last aspect submitted in this behalf is that the reservation could be granted to PwD if: (i) the Rules provide for promotion from the feeder cadre to the promotional posts; and (ii) posts are identified in the promotional cadre, which are capable of being filled up with Persons with Disability.⁷

17. On examination of the aforesaid plea we find that that there is merit in what the learned *Amicus Curiae* contends and we are of the view that really this issue is no more *res integra* in view of the judgment of this Court in **Government of India & Anr. vs. Ravi Prakash Gupta & Anr.**⁸ and **Union of India vs. National Federation of the Blind (supra)** opining that reservation has to be computed with reference to total number of vacancies in the cadre strength and no distinction can be made between the posts to be filled by direct recruitment and by promotion. Thus, total number of vacancies in the cadre strength would include the vacancies to be filled in by nomination as well as by promotion. In fact, this was the view adopted by the Bombay High Court discussed aforesaid in **National Confederation for Development of Disabled and Anr. vs. Union of India and Ors. (supra)** with the challenge raised to the same in a SLP being rejected in **Union of India vs. National Confederation for Development of Disabled & Anr.**⁹. We may note the observations in **Rajeev Kumar Gupta and Others vs. Union of India and Others (supra)** in paragraph 24 to the effect:

7 This is how the Bombay High Court in *Ravindra v. Union of India*, 2020 SCC OnLine Bom 771 has interpreted the judgments of this Hon'ble Court in *Rajeev Kumar Gupta (supra)* and *Siddaraju (supra)*.

8 (2010) 7 SCC 626.

9 (2015) 13 SCC 643.

(110)

"Once the post is identified, it must be reserved for PwD irrespective of the mode of recruitment adopted by the State for filling up of the said post" and a direction was issued to the Government to extend 3% reservation to PwD in all identified posts in Group A and Group B "irrespective of the mode of filling up of such posts".

Learned *Amicus Curiae* has rightly pointed out the two preliminaries for operationalising the said provision, i.e. there has to be rules providing for promotion from the feeder cadre to the provisional post as there cannot be promotions even for the PwD *de hors* the rules as a singular benefit. The requirement under Section 32 of the 1995 Act has also to be completed for identifying the posts in the promotional cadre.

18. In our view, the aforesaid should put at rest the controversy insofar as the mandate of 1995 Act qua promotion is concerned.

II. Whether reservation under Section 33 of the 1995 Act is dependent upon identification of posts as stipulated by Section 32?

19. On a plea of the learned *Amicus Curiae*, which we unhesitatingly accept, there can be little doubt that it was never the intention of the legislature that the provisions of Section 32 would be used as a tool to frustrate the benefits of reservation under Section 33. In fact, identification of posts for purposes of reservation had to take place immediately after the 1995 Act. A resistance to such reservation is obvious from the delaying tactics adopted by most of the government authorities in truly implementing the intent. It thus shows that sometimes it is easier to bring a legislation into force but far more difficult to change the social mind set which would endeavour to find

ways and means to defeat the intent of the Act enacted and Section 32 was a classic example of the same. In **Government of India & Anr. vs. Ravi Prakash Gupta & Anr.(supra)** also, this Court mandated the identification of posts for purposes of reservation. Thus, what is required is identification of posts in every establishment until exempted under proviso to Section 33. No doubt the identification of the posts was a prerequisite to appointment, but then the appointment cannot be frustrated by refusing to comply with the prerequisite. This view was affirmed by a larger Bench of three Judges in **Union of India vs. National Federation of Blind (supra)**.

III. Whether in absence of a provision in the Rules for reservation in promotion for PwD, whether promotion can be denied to a PwD?

20. The aforesaid issue was raised by learned *Amicus Curiae* in the context of the plea of the appellant State that the State does not provide for any reservation in promotion for PwD. Thus, a person with disability would be considered for promotion along with other persons working in the feeder cadre. We have no doubt that the mandate of Section 32 of the 1995 Act enjoins the government to identify posts that can be filled up with persons with disability. Thus, even posts in promotional cadre have to be identified for PwD and such posts have to be reserved for PwD. The identification of such posts is no doubt a prerequisite for reservation in promotion for PwD. There cannot be methodology used to defeat the reservation in promotion. Once that post is identified, the logical conclusion would be that it would be reserved for PwD who have been promoted. The absence of rules to provide for reservation in promotion would not defeat the rights of PwD to a reservation in

promotion as it flows from the legislation and in our view, this is the basis of the mandate of this Court in **Rajeev Kumar Gupta's and Siddaraju's cases** (supra).

21. The only caveat to the aforesaid would be if the Government is of the view that the posts in the promotional cadre cannot be reserved for PwD category due to functional or other reasons and that should not be a ruse to defeat the reservation in promotion. We are conscious of the fact that such a scenario will result in frustration and stagnation as others may get promoted even over the persons with disability as submitted by the learned *Amicus Curiae*, more often than not, the disability comes in the way of meeting the requirements for promotion. In such a situation, we would require the government to explore methods to address the issue of stagnation of PwD.

22. In the aforesaid eventuality, learned *Amicus Curiae* has suggested some solutions, i.e., (a) to provide promotional avenues in other departments/establishments (where posts are identified for PwD at a higher level) or (b) grant of higher pay in the same post. This is stated to be an obligation flowing from Section 47 of the 1995 Act.

23. In the recent judgment of this Court in **Vikash Kumar vs. Union Public Service Commission**¹⁰ while dealing with the latter 2016 Act, an expansive interpretation has been given to Section 20 read with Section 2(y). The said provisions read as under:

"20. Non-discrimination in employment.—

(1) No Government establishment shall discriminate against any person with disability in any matter relating to employment:

Provided that the appropriate Government may, having regard to the type of work carried on in any establishment, by notification and subject to such conditions, if any, exempt any establishment from the provisions of this section.

(2) Every Government establishment shall provide reasonable accommodation and appropriate barrier free and conducive environment to employees with disability.

(3) No promotion shall be denied to a person merely on the ground of disability.

(4) No Government establishment shall dispense with or reduce in rank, an employee who acquires a disability during his or her service:

Provided that, if an employee after acquiring disability is not suitable for the post he was holding, shall be shifted to some other post with the same pay scale and service benefits:

Provided further that if it is not possible to adjust the employee against any post, he may be kept on a supernumerary post until a suitable post is available or he attains the age of superannuation, whichever is earlier.

(5) The appropriate Government may frame policies for posting and transfer of employees with disabilities."

"2. Definitions-

(y) "reasonable accommodation" means necessary and appropriate modification and adjustments, without imposing a disproportionate or undue burden in a particular case, to ensure to persons with disabilities the enjoyment or exercise of rights equally with others;"

24. A reading of the aforesaid provisions shows that non-discrimination in employment is a mandate of the legislature. In the context of sub-section (2) of Section 20, where the expression used is "reasonable accommodation" as an aspect to be provided by the Government establishments, this expression has been defined in Section 2(y) to

(1/4)

mandate necessary and appropriate modifications and adjustments to ensure that the PwD enjoy or exercise their rights equally with others.

25. We see no reason why a clue cannot be taken from such a line of interpretation and reasoning to carry out the intent of the Legislation. Even under the 1995 Act, the rights of PwD, and how they would attain an equal opportunity has been an ongoing exercise blocked by a greater impediment of a social mind set change and the 2016 Act is the result thereof.

IV. Whether the Respondent can be promoted by giving benefit of reservation as she is a PwD, despite the fact that she was not appointed in the PwD quota?

26. If we may say so, this was the most crucial issue which persuaded us to grant leave in the SLP. The direction in the impugned order was for the respondent to be considered for the promotion based on disability at the time when the claim originally arose, but subject to her seniority with reference to other PwD candidates entitled to such reservation. She was also held entitled to the notional benefits of her promotion from the date she was so found entitled. In the factual context, it has been pointed out by learned *Amicus Curiae* that the respondent had claimed a promotion to the post of UDC with effect from 1st July, 2002 and further to the post of Cashier with effect from 20th May, 2012. The endeavour of the *Amicus Curiae* was to obtain necessary information from the appellant-State and to seek their response. In this behalf, it has been pointed out that The Ministry of Social Justice and Empowerment in the Department of Empowerment of Persons with Disabilities (Divyang), Government of India has undertaken a very comprehensive exercise of identifying posts which can be reserved for PwD and the list of such posts are available on the

website. From that it appears that the post of UDC/Cashier would be amenable to reservation for PwD and thus there can be little doubt that the respondent has been capable of discharging functions of the promotional post and thus could not be denied the benefit of reservation (even if Rules do not provide for any reservation in promotion) as repeatedly observed by us that Section 32 of the 1995 Act is to facilitate but not to impede the legislative mandate.

27. Now coming to the question of the respondent not being initially appointed in the quota for PwD in the feeder cadre, we note that there is no dispute about the benchmark disability of the respondent. It would be discriminatory and violative of the mandate of the Constitution of India if the respondent is not considered for promotion in the PwD quota on this pretext. Once the respondent has been appointed, she is to be identically placed as others in the PwD cadre. The anomaly which would arise from the submission of the appellant-State is apparent - a person who came in through normal recruitment process but suffers disability after joining service would on a *pari materia* position be also not entitled to be considered to a vacancy in a promotional post reserved for a PwD. This is the consequence if the entry point is treated as determinative of the entitlement to avail of the benefits. Source of recruitment ought not to make any difference but what is material is that the employee is a PwD at the time for consideration for promotion. The 1995 Act does not make a distinction between a person who may have entered service on account of disability and a person who may have acquired disability after having entered the service. Similarly, the same position would be with the person who may have entered service on a claim of a compassionate

(116)

appointment. The mode of entry in service cannot be a ground to make out a case of discriminatory promotion.

SOME VIEWS OF THE HIGH COURT

28. Mr. Gaurav Agrawal, learned *Amicus Curiae* through the note also pointed out different views of the High Court -

a. ***Poonam Manchanda vs. Union of India*¹¹**

The Punjab and Haryana High Court while dealing with the case of the petitioner having 70% disability noticed that she had been appointed as Assistant Accounts Officer in 1999 and promoted as Accounts Officer in 2007. On both occasions she did not claim reservation but was considered in general category. The next post was that of Senior Accounts Officer and she claimed promotion on roster No. 1 earmarked for PwD. The Rules did not provide for reservation for PwD in promotion to Group A and Group B posts. The High Court granted relief relying upon ***Rajeev Kumar Gupta's case (supra)*** and directed that the petitioner be considered for promotion under 3% reservation provided for PwD.

b. ***Union of India vs. Poonam Manchanda*¹²**

An appeal was filed before this Court was dealt with along with a batch of matters of which judgment was delivered in ***Siddharaju's case (supra)***.

c. ***Kamla Chanyal vs. State of Uttarakhand*¹³**

11 2019 SCCOnline P&H 2710.

12 Civil Appeal No. 6092/2019

13 W.P. No. 126/2015 – judgment dated 29.11.2016

The Uttarakhand High Court once again relying upon the judgment in **Rajeev Kumar Gupta's case (supra)** quashed an OM to the extent that it ruled out reservation for PwD in Group A and B posts and directed the Government to consider the issue relating to the availability of benefit of reservation to the petitioner therein in the capacity as PwD. We may note that as per the solution of learned *Amicus Curiae*, the Chief Commissioner for Persons with Disabilities [Divyangjan], Government of India receives a number of complaints regarding non-grant of promotion to PwD in Group A and B posts by denying them benefit of reservation in promotion. In **B. Uma Prasad vs. Chief Executive Officer, EPFO¹⁴**, the Chief Commissioner noticed that the complainant was not being given reservation in promotion to Group B post and recommended that the respondent may give promotion to persons with benchmark disabilities in all posts, including Group A and Group B posts.

CONCLUSION

29. We are of the view that the course of action followed by the High Court in the impugned order is salutary and does not call for any interference. We have also answered various questions which have arisen in the present proceedings assisted by learned *Amicus Curiae*. In fact, what seems to emerge is that the appellant-State has not implemented the judgment of this Court in **Rajeev Kumar Gupta's and Siddharaju's cases (supra)**. Thus, we consider it appropriate to issue directions to the State of Kerala to implement these judgments and provide for reservation in promotion in all posts after identifying said posts. This exercise should

¹⁴ A case before the Chief Commissioner for Persons with Disabilities (Divyangjan), Govt. of India

be completed within a period of three months. We are making it time bound so that the mandate of the Act is not again frustrated by making Section 32 as an excuse for not having identified the post.

30. We may also note that the 2016 Act has now taken care of how to deal with the aspect of reservation in promotion. The view aforesaid was required to be propounded as a large number of cases may still arise in the context of the 1995 Act.

31. The appeal is accordingly dismissed in terms aforesaid.

32. We record our appreciation for the able assistance rendered by Mr. Gaurav Agrawal, learned *Amicus Curiae* and note that while submitting his synopsis he was furnished assistance in turn by Mr. S.K. Rungta, learned Senior Counsel and Mr. Archit Verma, Legal Consultant in the office of Chief Commissioner for Persons with Disabilities.

.....J.
[SANJAY KISHAN KAUL]

.....J.
[R. SUBHASH REDDY]

NEW DELHI;
JUNE 28, 2021.

copy
true copy

112

119

ANNEXURE

No. 36035/7/95-Estt.(SCT)

Government of India

Ministry of Personnel, Public Grievances & Pensions
Department of Personnel & Training

North Block, New Delhi
dated the 18th February, 1997

OFFICE MEMORANDUM

Subject: Reservation for the physically handicapped in the posts filled by promotion

The undersigned is directed to invite attention to O.M. No. 36035/8/89-Estt.(SCT) dated 20.11.1989 of the Department of Personnel & Training on the subject noted above. Subsequent to the issue of the aforesaid Office Memorandum, a number of references were received from Ministries and Departments regarding difficulties being faced in calculating/operating the posts reserved for the physically handicapped as per the Office Memorandum. The matter has been examined in the light of the problems being faced by Ministries/Departments and it has been decided that:

- (i) For providing reservation to the physically handicapped in promotion, which would be 3% of such posts, a separate register of 100 points will be maintained for a post identified to be manned by the physically handicapped, in which point No. 33, 67 and 100 will be reserved for the physically handicapped. The Heads of Departments may start the point No.33 with any kind of disability depending on the availability of feeder grade officers i.e. if senior most officer in the feeder grade belongs to Orthopedically Handicapped category he may utilise the point by promoting the officer. However, he must ensure that there is proper rotation of reservation among the different categories of disabilities. The Physically Handicapped persons promoted under the reservation provided for them as per the point in the above mentioned register should be placed in the appropriate category viz. SC/ST/General candidates depending upon the category to which they belong in the

120 143

promotion roster. To illustrate, if in a given year there are two vacancies reserved for the Physically Handicapped and out of two Physically Handicapped candidates promoted, one belongs to the Scheduled Castes and the other to general category then the Physically Handicapped SC candidates will be adjusted against the SC point in the reservation roster and the other general candidates against general category point in the relevant reservation roster. In case the number of vacancies against which promotion is made is less and none of the vacancies falls on points reserved for the SC or the ST but one of the vacancies is to be reserved for the physically handicapped (as per the point in the register) and the officer promoted belongs to a reserved community, the next available reserved point in the reservation roster for that category will be utilised for adjusting the reserved candidate, e.g. if there are three vacancies falling under point 5, 6 & 7 which are to be treated as unreserved as per the promotion roster out of which one vacancy has to be reserved for physically handicapped as per the point in the register and if the officer selected under the quota reserved for physically handicapped belongs to SC, he would be adjusted against the next available SC point i.e. point No.8.

- (ii) In the cases where the percentage of posts filled by Direct Recruitment is 75% or more, no reservation will be provided for any category including the physically handicapped while filling up the posts by promotion.
- (iii) While filling posts by promotion, by selection, against vacancies reserved for the physically handicapped, the physically handicapped candidates who are within the normal zone of consideration will be considered. Where adequate number of physically handicapped candidates of the appropriate category of handicap are not available within the normal zone, the zone of consideration may be extended to five times the normal size and the physically handicapped persons falling within the extended zone may be considered. In the event of non availability of an officer even in the extended zone the post could be exchanged with other categories of handicap, identified for the relevant post and the reservation carried forward for the next three recruitment years, whereafter it will lapse.
- (iv) In posts filled by promotion by non-selection, the eligible physically handicapped candidates can be considered for promotion against the reserved vacancies and in case no eligible physically handicapped

(114) (121)

candidate of the appropriate category of handicap, is available, the post will be exchanged with other categories of handicap, identified for it, and reservation carried forward for the next three recruitment years, whereafter it will lapse.

2. All Ministries/Departments are requested to bring the above instruction to the notice of Heads of Departments and appointing authorities under their control for compliance.

(Y.G. Parande)
Director

To

All Ministries/Departments of the Government of India

V.P. 1/1
true copy

Applicant

A-16
Srivastava, H.

121

ANNEXURE - L

1/C.A.3742/2021

28 09 21

IN THE KARNATAKA STATE ADMINISTRATIVE TRIBUNAL AT
BANGALORE

DATED: THIS THE 28th DAY OF SEPTEMBER 2021

PRESENT

THE HON'BLE Mr.NARAYANA, JUDICIAL MEMBER

AND

THE HON'BLE Dr.S.K.PATTANAYAK, ADMINISTRATIVE MEMBER

APPLICATION NUMBER 3141 OF 2021

Sri. Gururaj Allagi,
S/o Chandrakant,
Aged about 37 years,
Presently working as
Assistant Engineer,
In the office of the Chief
Project Officer,
State Highway Development Project,
Annexe Building, K.R. Circle,
Bengaluru-560 001.

...APPLICANT

(By Sri.H.Kantharaja, Advocate for Applicant)

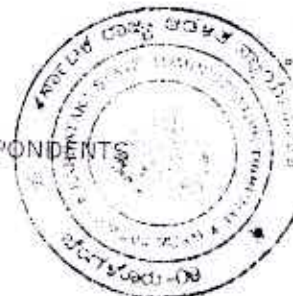
VERSUS

1. The State of Karnataka,
Rep. by Chief Secretary,
Vidhana Soudha,
Dr.Ambedkar's Veedhi,
Bengaluru-560 001.

2. Additional Chief Secretary,
Public Works Department,
Vikasa Soudha,
Dr.Ambedkar's Veedhi,
Bengaluru-560 001.

3. The Secretary,
Public Works Department,
Vikasa Soudha,
Dr.Ambedkar's Veedhi,
Bengaluru-560 001.

...RESPONDENTS



122

A No. 3141 OF 2021

(By Sri. D.C. Parameshwaraiah, Govt. Pleader for respondent)

This application is filed under Section 19 of the Administrative Tribunals Act, 1985, with a prayer to direct the respondents to give promotion to the applicant to the post of Assistant Executive Engineer and all consequential promotions retrospectively from the date of his eligibility along with all consequential benefits arising therefrom by providing 3% reservation quota to the specially abled persons in the promotion As per the provision of the Rights of Persons with Specially Abled Persons Act, 2016 (Central Act 49/2016).

This Application coming on for Hearing, having been reserved for pronouncement of Orders, **Mr. Narayana, Hon'ble Judicial Member**, made the following:

ORDER

The applicant has sought for the following reliefs:

"a) Issue direction to the Respondents to give promotion to the applicant to the post of Assistant Executive Engineer and all consequential promotions retrospectively from the date of his eligibility along with all consequential benefits arising there from by providing 3% reservation quota to the 'Specially Abled Persons' in promotion as per the provisions of the Rights of persons with Specially abled Persons Act, 2016 (Central Act 49/2016) and the law laid

123

down by the Hon'ble Supreme Court mentioned in this application.

b) Grant such other orders or direction as this Hon'ble Tribunal deems fit to grant in the facts and circumstances of the case, in the interest of justice and equity"

2. We have heard Sri. H. Kantharaja, learned Counsel for the applicant and Sri. D.C. Parameshwaraiah, learned Government Pleader for respondents.

3. Learned Counsel for the applicant contended that the applicant is presently working as Assistant Engineer in State High Way Development Project of Public Works Department and has completed 12 years of service in total in the said department. The applicant is a 'Specially Abled Person' with Locomotor Disability with 60% permanent disability in relation to his left leg. The applicant was initially appointed as the Assistant Engineer in Public Works Department through direct recruitment process under physically handicapped category vide O.M. dated 25.07.2007 (Annexure-A2). The applicant was declared to have satisfactorily completed the probationary period from 08.08.2007 to 07.08.2009 vide order dated 19.02.2010.



124

A.No. 3141 OF 2021

(Annexure-A3) of the Chief Engineer, Samparka and Kattadagalu, Bengaluru (South), Public Works Department. It is contended that the applicant was appointed about 13 years back and till date he has not been extended with the benefit of promotion. As per the provisions of the Rights of Persons with Specially Abled Persons Act, 2016 (Central Act 49/2016) and the rulings of the Hon'ble Supreme Court, 3% reservation is to be provided for the persons with disabilities in promotions. In view of the said provision, the applicant being a Specially abled person, who was appointed in 2017, is entitled for promotion retrospectively from the date of his eligibility. Hence, the applicant has submitted representations dated 04.12.2014 and 14.02.2020 (Annexures-A5 and A6) to the respondent No.2 thereby seeking promotion retrospectively from the date of his eligibility. However, the said representations of the applicant have not been considered till date. The applicant has served throughout blemishlessly. Non-consideration of the case of the applicant for promotion retrospectively from the date of eligibility has seriously affected the legal rights of the applicant. Hence, prays for allowing the application urging various grounds.

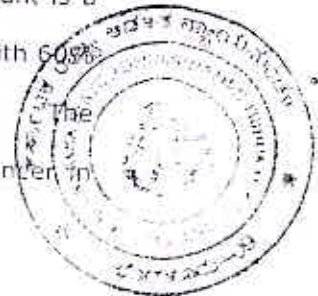
125

4. Learned Counsel for the applicant relied upon following judgements of the Hon'ble Supreme Court in support of his case:

- i) *Union of India vs. National Federation for blind & Ors. [2013 (10) SCC 772];*
- ii) *Rajiv Kumar Gupta & Ors. vs. Union of India & Ors[2016 (6) Scale 417];*
- iii) *Siddaraju vs. State of Karnataka & Ors. (Civil Appeal No.1567/2017 dt.14.01.2020;*
- iv) *State of Kerala & Ors vs.Leesamma Joseph (Civil Appeal No.59.2021)*

5. Learned Government Pleader has not filed any reply statement but has orally objected to the application contending that the application filed by the applicant is not maintainable either in law or on facts and the applicants are not entitled to any of the reliefs as prayed for in the application and hence, he sought for dismissal of the application..

6. With the above arguments, we have perused the entire record. It is an admitted fact that the applicant is a 'Specially Abled Person' with Locomotor Disability with 60% permanent disability in relation to his left leg. The applicant was initially appointed as Assistant Engineer in



126

A.No. 3141 OF 2021

Public Works Department through direct recruitment process under physically handicapped category vide O.M. dated 25.07.2007 (Annexure-A2). It is contended that the applicant was appointed about 13 years back and till date he has not been extended with the benefit of promotion. As per the provisions of the Rights of Persons with Specially Abled Persons Act, 2016 (Central Act 49/2016) and the rulings of the Hon'ble Supreme Court, 3% reservation is to be provided for the persons with disabilities in promotions. In view of the said law, the applicant being a Specially disabled person who was appointed in 2017, is entitled for promotion retrospectively from the date of his eligibility. Hence, the applicant made representations dated 04.12.2014 and 14.02.2020 (Annexures-A5 and A6) to the respondent No.2 thereby seeking promotion retrospectively from the date of his eligibility.

7. We have perused the 3 Judge Bench Judgment of the Hon'ble Supreme Court in the case of **Union of India vs. National Federation for blind & Ors. [2013 (10) SCC 772]**, wherein in para 51 of the judgment, the Hon'ble Apex Court has held that:

127

A.No. 3141 OF 2021

...We are of the view that the computation of reservation for persons with disabilities has to be computed in case of Group 'A', 'B', 'C' and 'D' posts in an identical manner viz., "computing 3% reservation on total number of vacancies in the cadre strength" which is the intention of the legislature....'

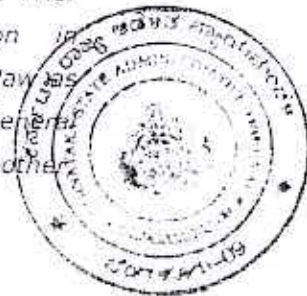
In para 54 of the judgment, it has been directed as follows:

(i) *****

(ii) We hereby direct the 'appropriate government' to compute the number of vacancies available in all the 'establishments' and further identify the posts for disabled persons within a period of three months from today and implement the same without default'.

8. In the case of **Rajeev Kumar Gupta and others vs Union of India** and others reported in (2016) 13 SCC 153, the Hon'ble Apex Court has held that:

"14. We examine the applicability of the prohibition on reservation in promotions as propounded by *Indira Sawhney*. Prior to *Indira Sawhney*, reservation in promotions were permitted under law as interpreted by this Court in *General Manager, Southern Railway and another*



vs Rangachari reported in AIR 1962 SC 36. Indira Sawhney specifically overruled Rangachari to the extent that reservations in promotions were held in Rangachari to be permitted under Article 16(4) of the Constitution. Indira Sawhney specifically addressed the question whether reservations could be permitted in matters of promotion under Article 16(4). The majority held that reservations in promotion are not permitted under Constitutional Scheme.

21. The principle laid down in Indira Sawhney is applicable only when the State seeks to give preferential treatment in the matter of employment under State to certain classes of citizens identified to be a backward class. Article 16(4) does not disable the State from providing differential treatment (reservations) to other classes of citizens under Article 16(1), if they otherwise deserve such treatment. However, for creating such preferential treatment under law, consistent with the mandate of Article 16(1), the State cannot choose any one of the factors such as caste, religion, etc mentioned in Article 16(1) as the basis. The basis for providing reservation for PWD is physical disability and not any of

129

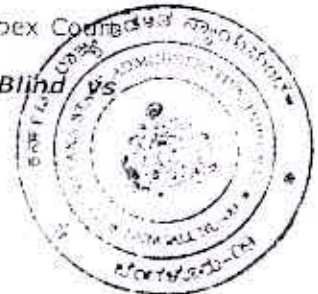
A.No. 3141 OF 2021

*the criteria forbidden under Article 16(1). Therefore, the rule of no reservation in promotions as laid down in *Indira Sawhney* has clearly and normatively no application to the PWD.*

24.....Once a post is identified, it means that a PWD is fully capable of discharging the functions associated with the identified post. Once found to be so capable, reservation under Section 33 to an extent of not less than three percent must follow. Once the post is identified, it must be reserved for PWD irrespective of the mode of recruitment adopted by the State for filling up of the said post.

25.....We direct the government to extend three percent reservation to PWD in all identified posts in Group A and Group B, irrespective of the mode of filling up of such posts".

9. In the case of ***Siddaraju vs State of Karnataka and others*** in CA 1567/2017 dated January 14/15, 2020, the Full Bench of the Hon'ble Supreme Court has held placing reliance on the judgment of the Hon'ble Apex Court in the case of ***National Federation of the Blind vs***

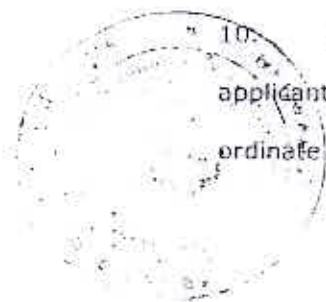


130

Sanjay Kothari, Secy, DOPT reported in (2015) 9 SCALE 611, has held in para 17 as follows,

'17.....The High Court held that no action can be initiated in the contempt petition on the ground that reservation had not been provided in the matter of promotion. We may hasten to add that this is not a correct reading of the law laid down by this Court. National Federation of the Blind vs Sanjay Kothari, Secy, Dept. Of Personnel and Training, (2015) 9 SCALE 611 was a judgment in a contempt petition in which the contention taken up by the petitioner was repelled by stating that para 51 of the 2013 judgment has held that the manner of identification of posts of all groups must be uniform and nothing beyond. After the declaration of the law in Rajeev Kumar Gupta & others v. Union of India & others - (2016) 13 SCC 153, it is now clear beyond doubt that the OM of 2005 cannot be given effect to when it is in the teeth of the 2016 judgment'.

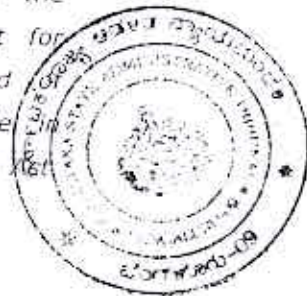
At the time of argument, learned Counsel for the applicant produced copy of the judgment passed by the Coordinate Bench of this Tribunal in A.No.1139 of 2020 in



131

support of his case and this Tribunal partly allowed the said application and contended that the facts and circumstances of the above case are identical and similar to the present case on hand. The relevant paras reads thus:

"15. From the provisions of the 1995 Act and 2016 Act, it is clear that promotion cannot be denied to a person with disability on the ground of disability alone, in the absence of any notification to exempting the concerned establishment from the operation of the Section 47 of the 1995 Act or Section 20 of the 2016 Act. The second respondent has issued a Notification dated 16-01-2020, of a list of persons eligible to be considered for promotion that has excluded the applicant. The learned government pleader fairly stated that there are no other reasons other than physical disability on the basis of which the applicant has been excluded. There are no reasons stated in the reply statement as to why the applicant has not been considered in the list of persons eligible for promotion. Therefore, the non-consideration of the applicant for promotion merely on the ground of physical disability is impermissible in terms of the 1995 Act or the 2016 Act."



132

A No. 3141 CF 2021

Therefore, we are of the considered view that the applicant who has actually been recruited to service without the benefit of PWD reservation, cannot be discriminated on the ground of physical disability, the non-consideration of his claim to be included in the list of persons for promotion is bad in law and he has a right to be promoted to the cadre of Principal on such consideration, if he is otherwise eligible to be promoted and his physical disability shall not be factor in consideration of his claim and credentials for promotion.

16. We finally come to the issue of reservation of posts in the cadre of Principal for PWD persons.

133. Identification of posts for reservation.-The appropriate Government shall—

(i) identify posts in the establishments which can be held by respective category of persons with benchmark disabilities in respect of the vacancies reserved in accordance with the provisions of section 34;

(ii) constitute an expert committee with representation of persons with benchmark disabilities for identification of such posts; and



(iii) undertake periodic review of the identified posts at an interval not exceeding three years.

34. Reservation.—(1) Every appropriate Government shall appoint in every Government establishment, not less than four per cent of the total number of vacancies in the cadre strength in each group of posts meant to be filled with persons with benchmark disabilities of which, one per cent each shall be reserved for persons with benchmark disabilities under clauses (a), (b) and (c) and one per cent for persons with benchmark disabilities under clauses (d) and (e), namely:—

- (a) blindness and low vision;
- (b) deaf and hard of hearing;
- (c) locomotor disability including cerebral palsy, leprosy cured, dwarfism, acid attack victims and muscular dystrophy;
- (d) autism, intellectual disability, specific learning disability and mental illness;
- (e) multiple disabilities from amongst persons under clauses (a) to (d) including deaf-blindness in the posts identified for each disabilities:

Provided that the reservation in promotion shall be in accordance with such instructions



134

1-

A.No. 3141 OF 2021

as are issued by the appropriate Government from time to time:

Provided further that the appropriate Government, in consultation with the Chief Commissioner or the State Commissioner, as the case may be, may, having regard to the type of work carried out in any Government establishment, by notification and subject to such conditions, if any, as may be specified in such notifications exempt any Government establishment from the provisions of this section.

17. It is submitted by the learned Government pleader that posts in the Cadre of Principal have been identified for persons with disabilities with regard to the vacancies. This exercise requires to be done in the periodic review exercise under Section 33 (iii) of the Act (supra) by the first respondent. It is settled law in terms of the judgment of the Hon'ble Supreme Court in Rajeev Kumar Gupta, that once a post is identified, it must be reserved for PWD irrespective of the mode of recruitment adopted by the State for filling up the said post. It is not the case of the respondent State that review has been done in respect of the vacancies in the posts of principal in terms of the aforesaid provisions of the Act (supra). Therefore, a direction shall

be in order to the first respondent to consider reservation of posts in the cadre of principal which is being filled up only through promotion.

18. The applicant has prayed for quashing the impugned Memorandum dated 16-01-2020 as at Annexure A18. In the application, the applicant has not made out any grievance against the persons who have been shortlisted for promotion to the cadre of Principal. It is not at all the case of the applicant that they are not eligible for promotion in accordance with their seniority. No relief is claimed against the persons named in the Memorandum, no relief even against the persons who are junior to the applicant and they are also not parties to this application even in a representative capacity. Hence the challenge to the list perse is rejected. However, the applicant has made out a strong case for his inclusion in the said list with regard to his seniority and consideration for promotion, without any discrimination based on his disability status with regard to the provisions of the 2016 Act, which prohibits such discrimination.

11? We have perused the said judgement in A.No. 1139 of 2020 and the judgements of the Hon'ble Supreme Court



136

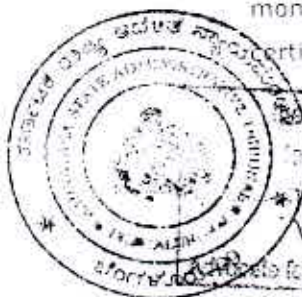
16

A No 3141 OF 2021

extracted above. We are of the opinion that the above judgements are identical and squarely applicable to the facts of the present case and the applicant has made out a strong case. Hence, we proceed to pass the following:

ORDER

- (i) The application is allowed.
- (ii) Respondents are directed to consider the case of the applicant for promotion to the applicant to the post of Assistant Executive Engineer and all consequential promotions retrospectively from the date of his eligibility, with all consequential benefits by providing 3% quota to the 'Specially Abled Persons' in promotion as per the provisions of the Rights of persons with Specially Abled Persons Act, 2016 (Central Act 49/2016).
- (iii) Time Fixed for compliance is three months from the date of receipt of a certified copy of this order.



This is a True Copy of the Document
As Annexure: A-1
of Order dated 22.07.21
for the Respondent (s)

Sd/-
MEMBER
Sd/-
MEMBER

This is the True Copy of the Document
Referred to as Annexure: A-2
Application of Smt/Sri M.P. Rajan
Advocate for Applicant (s) Respondent (s)

COPY FILED ON 22.07.21
C/D PRODUCED ON 22.07.21
C/D EXAMINED ON 22.10.21
COPY DELIVERED ON 22.10.21

True copy

CERTIFIED COPY

[Signature]
Section Officer
Karnataka State Administrative Tribunal
B-1, Bangalore - 09
22/10

137

ANNEXURE - M

IN THE KARNATAKA STATE ADMINISTRATIVE TRIBUNAL
AT BENGALURU

APPLICATION No. /2021

BETWEEN:

K. Annapurna,
D/o. Late H. N. Krishnamurthy,
Aged about 42 years,

Presently working as
Assistant (Group-C),
Karnataka Legislative Assembly Secretariat,
Vidhana Soudha,
Bengaluru-560001

Residing at

No.13/171, 5th Cross,
17th Main Road,
F.F.Layout, Laggere,
Bengaluru-560058

!!! APPLICANT

REPRESENTED BY

H.K.RAVI
Advocate,
Kantharaja & Associates,
No.201, 2nd Floor,
Kurubara Sangha Building,
Golden Jubilee Block,
1st Main, Gandhinagara,
Bengaluru-560 009.

Phone:- 9964543939
Email:- Mail.hovihk@gmail.com

AND:

1. The State of Karnataka,
Represented The Chief Secretary,
Vidhana Soudha,
Dr. Ambedkar's Veedhi,
Bengaluru-560001
2. State of Karnataka
Represented by its Secretary,
Karnataka Legislative Assembly Secretariat,

**APPLICATION UNDER SECTION 19 OF THE ADMINISTRATIVE
TRIBUNALS ACT, 1985**

The Applicant above named most respectfully submits as follows:

**1. PARTICULARS OF THE ORDER AGAINST WHICH
APPLICATION IS MADE:**

a) Order Nos. : Nil

Seeking direction to the respondents to give promotion to the Applicant to the post of Senior Assistant and thereafter and all consequential promotions retrospectively from the date of her eligibility along with all consequential benefits arising therefrom by providing 'quota of reservation' in promotion to the 'Specially Abled Persons' as per the provisions of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016).

b) Dated : Nil

c) Passed by : Nil

d) Subject in brief:

The applicant is a B.Com. degree holder. The applicant is a 'Physically Disabled Person' with 80% (Eighty percent) permanent Locomotory disability. The applicant was initially appointed as Junior Assistant in the office of the Respondent no.2 on 04.05.2011 through direct recruitment process under physically handicapped category reservation vide official memorandum dated 04.05.2011. The applicant was declared to have satisfactorily completed the probationary period.

The Applicant is presently working as Assistant in the office of the respondent no.2. The Applicant has completed 10 years of service in the respondent no.2 department.

The applicant was appointed about 10 years ago and once she was promoted in 2015 from the Junior Assistant to Assistant. As per the provisions of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016) and the rulings of the Hon'ble Supreme Court, 3% reservation is to be provided for the persons with disabilities in promotions. In view of the said law, the applicant being a Specially Disabled Person who was appointed in 2011, is entitled for promotion retrospectively from the date of her eligibility under quota of reservation for specially abled persons. The Applicant has made several requests seeking promotion from the date of her eligibility, however the same has not been considered till date. The Applicant has served throughout blemishlessly. Non-consideration of the case of the Applicant for promotion retrospectively under reservation quota from the date of eligibility has seriously affected the legal rights of the Applicant. Hence this Application.

II.LIMITATION: The Applicant declares that the subject matter against which the Applicant seeks relief before this Hon'ble Tribunal is within the period of limitation prescribed under Section 21 of the Administrative Tribunal Act, 1985. The Applicant has sought for promotion from the date of her eligibility. Hence, it is a continuous and recurring cause of action.

III(A) BRIEF FACTS OF THE CASE

The Applicant is a B.Com. degree holder. The Applicant is a 'Physically Disabled Person' with 80% (Eighty percent) permanent Locomotory disability. The copy of the disability certificate of the

Applicant dated 10.02.2020 is herewith produced as **Annexure-A1**. The Applicant was initially appointed as Junior Assistant in the office the Respondent no.2 on 04.05.2011 through direct recruitment process under physically handicapped category reservation vide official memorandum dated 04.05.2011. The Applicant was declared to have satisfactorily completed the probationary period. The copy of the said Official Memorandum dated 04.05.2011 is herewith produced as **Annexure-A2**. The Applicant was declared to have satisfactorily completed the probationary period in the year 2012. The Applicant has also passed departmental examination. The copy of the certificate dated 22.08.2012 in that regard is herewith produced as **Annexures-A3**.

The Applicant is presently working as the Assistant in the office of the respondent no.2. The Applicant has completed 10 years of service in the respondent no.2 department.

The Applicant was appointed about 10 years ago and once she was promoted in 2015 from the Junior Assistant to Assistant. As per the provisions of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016) and the rulings of the Hon'ble Supreme Court, 3% reservation is to be provided for the persons with disabilities in promotions. In view of the said law, the Applicant being a Specially Disabled Person who was appointed in 2011, is entitled for promotion retrospectively from the date of her eligibility under quota of reservation for specially abled persons. The Applicant has made a request to the respondent no.2 seeking promotion from the date of her eligibility, however the same has not been considered till date. The copy of the said representation dated 07.07.2021 is herewith produced as **Annexure-A4**.

The Applicant has served throughout blemishlessly. Non-consideration of the case of the Applicant for promotion

retrospectively under reservation quota from the date of eligibility has seriously affected the legal rights of the Applicant.

Considering the disability of the Applicant, she has been sanctioned with special allowances as could be seen from payslip for the month of August, 2021. The copy of the payslip for the month of August, 2021 is herewith produced as **Annexure-A5**.

The request of the Applicant for retrospective promotion is based on the decisions of the Hon'ble Supreme Court in the cases of Union of India and another v/s National Federation for Blind and others in Civil Appeal No.9096/2013 dated 08.10.2013 (2013 (10) SCC 772), Rajeev Kumar Gupta and others v/s Union of India and others in WP (Civil) No.521/2008 dated 30.06.2016 (2016(6) Scale 417) and Siddaraju v/s State of Karnataka and others in Civil Appeal No.1567/2017 decided on 14-1-2020 and State of Kerala & others and Leesamma Joseph in Civil Appeal No.59/2021. The said decisions of the Hon'ble Supreme Court are herewith produced as **Annexures- A6, A7, A8 and A9** respectively. Infact, the Government of India has provided reservation for 'Specially Abled Persons' in the posts held by promotion as could be seen from OM No.36035/7/95 Est (SCT) issued by the Government of India's Department of Personnel and Training on 18.02.1997 which is herewith produced as **Annexure-A10**. Despite the same, the Respondents are not providing reservation quota for Employees of 'Specially Abled Persons' and consequently to the Applicant with all consequential benefits retrospectively as on the date of eligibility.

In an identical case, in Application no.3141/201 Gururaj Allagi Vs State of Karnataka and others, this Hon'ble Tribunal vide its order dated 28.09.2021 this Hon'ble Tribunal has held that the Specially abled persons are entitled for reservation in promotion and their disability should not come in the way of promotion and therefore,

promotion is to be given to the applicant from the date of his eligibility within a period of 3 months if he is otherwise eligible with due regard to his seniority in the cadre and the applicant shall not be discriminated solely based on his disability status. The copy of the said order dated 28.09.2021 is herewith produced **Annexure-A11**. The Applicant being similarly placed, is also entitled for reliefs granted in the foresaid matter.

The Applicant has served throughout blemishlessly. Non-consideration of the case of the applicant for promotion to the post of Senior Assistant in the Department of respondent no.2 and all consequential promotions retrospectively from the date of her eligibility along with all consequential benefits arising therefrom has seriously affected the legal rights of the applicant. Hence this Application.

III(B). G R O U N D S:

- 1) That the Applicant has been working in the Department of respondent no.2 for over a period of 10 years. The Applicant is entitled for reservation under the quota for persons with disabilities under reservation quota as per the mandate of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016). Despite the same the Applicant has not been considered as the eligible candidate for the purpose of reservation under the employees of 'Specially Abled Persons' quota for Promotion retrospectively from the date of his eligibility.
- 2) That if the Applicant's case is not considered for promotion under reservation quota for persons with disabilities, she will be denied the Constitutional Provisions provided to her regarding promotion.

- 3) That the Constitution is not merely guarantee "formal equality" but also substantive equality. Same formality would mean that the society would simply reflects its extant hierarchy and order in the distribution of rewards and would oblige the State only responsible for treating of equal persons in the same manner, based on the objective standards. However, it is the model of substantive equality that the Indian Constitution has espoused under Article 14, has passed a formal equality. This implies that only equals must be treated as equal and un-equals must be treated as equals, which makes it the constitutional responsibility of the State to ensure the systematic and historic conditions of the disability classes of persons are taken into account in providing equal status and equal opportunities.
- 4) Thus, looking to the decisions of the Hon'ble Supreme Court referred to supra, it is very clear that the denial of 3% reservation to the persons with disabilities is in direct violation of the fundamental right enunciated under Article 14 of the Indian Constitution and statutory provisions of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016). Therefore, the Hon'ble Supreme Court rightly held that the 'Specially Abled Persons' are entitled for promotion both as per the mandate of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016) which has replaced the earlier enactment namely the Persons with Disabilities (Equal opportunity Protection of rights and full participation) Act, 1995 (Act no.1 of 1996) and also ideals of the Indian Constitution.
- 5) Not providing separate quota reservation in promotion to the employees with disabilities is not only in violation of the provisions of the said Act under Section 20, 33 and 34 but also Articles 14 and 16 of the Indian Constitution.

144

6) Thus, looking at any angle, the Respondents have committed serious error of law in not providing 3% reservation to the persons with disabilities including the Applicant despite the written and oral demands for the same. Hence, the Applicant has resorted to this Application and appropriate direction be issued to the Respondents for providing 3% reservation in promotion to the persons with disabilities including the Applicant.

III(C). GROUND FOR INTERIM PRAYER:

That the Applicant is eligible for promotion to the post of Senior Assistant in the Department of respondent no.2 and all consequential promotions retrospectively from the date of her eligibility along with all consequential benefits arising therefrom. The applicant is entitled for reservation for the persons with disabilities as per the provisions of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016), Articles 14 and 16 of the Constitution and the law laid down by the Hon'ble Supreme Court in the decisions cited above. The Applicant has already served for 10 years with unblemished record of service. Hence, it is just and necessary to grant interim order as sought for by the Applicant herein below.

IV. WHAT ALTERNATIVE REMEDY IS AVAILABLE? WHETHER SUCH REMEDY IS AVAILED OF? RESULT THEREOF?

The Applicant declares that she is left no other statutory remedies available. Therefore, she has filed this application for redressal of her grievances before this Hon'ble Tribunal.

V. MATTER NOT PREVIOUSLY FILED OR PENDING WITH ANY OTHER COURT:

(10) (146)

arising therefrom from the date of her eligibility in the interest of justice and equity.

Place: Bengaluru,

V. P. L. R.
Advocate for Applicant

Date: 18-12-2021

VERIFICATION

I, K. Annapurna, D/o. Late H. N. Krishnamurthy, Aged about 42 years, Presently working as Assistant (Group-C), Karnataka Legislative Assembly Secretariat, Vidhana Soudha, Bengaluru-560001, residing at No.13/171, 5th Cross, 17th Main Road, F.F. Layout, Laggere, Bengaluru-560058 do hereby verify that contents in paragraph Nos. I to III(A), IV, V, are true to the best of my knowledge and those at paragraph Nos. III(B), III(C), VI and VII are true and correct to the best of my information.

I further state that Annexures-A1 to A11 are true copies of their respective originals.

What is stated above is true and correct.

Place: Bengaluru,

Date:

To:
The Registrar,
Karnataka State Administrative Tribunal,
Bengaluru.

K. Annapurna
(Applicant)

145

The Applicant further declares that he has not previously filed any application, writ petition, suit regarding the matter in respect of which this application has been made before any Court of Law or any Authority or any other Bench of the Hon'ble Tribunal and nor any such application, writ petition or suit is pending before any of them.

VI. RELIEF/S SOUGHT:

In view of the facts mentioned above, the Applicant prays for following reliefs:

a) **ISSUE** direction to the Respondents ^{No 1 v/p} to give promotion to the Applicant to the post of Senior Assistant in the department of the respondent no.2 ^{vide representation dated 7/7/2021 At Amravati AL v/p} and all consequential promotions retrospectively from the date of his eligibility along with all consequential service benefits arising therefrom by providing 3% reservation quota to the 'Specially Abled Persons' in promotion as per the provisions of the Rights of Persons with Disabilities Act, 2016 (Central Act of 49 of 2016) and the law laid down by the Hon'ble Supreme Court mentioned in this Application.

b) **GRANT** such other orders or direction as this Hon'ble Tribunal deems fit to grant in the facts and circumstances of the case, in the interest of justice and equity.

VII. INTERIM RELIEF SOUGHT FOR:

Pending disposal of the above application, the Applicant most respectfully prays that this Hon'ble Tribunal be pleased to issue direction directing the Respondents ^{No 1 v/p} to give promotion to the Applicant to the post of Senior Assistant in the Department of the respondent no.2 ^{vide representation dated 7/7/2021 At Amravati AL v/p} and all consequential promotions retrospectively from the date of her eligibility along with all consequential benefits

148²

A.No.5991/2021

to the applicant in the second respondent department as Senior Assistant, and, etc.,

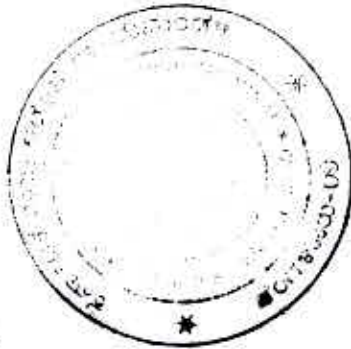
This Application coming on for Preliminary Hearing/Hearing, this day, the **Hon'ble Sri.NARAYANA, Judicial Member**, made the following :

ORDER

Learned Counsel for the applicant participated through video conference and submitted that he is going to withdraw the application with liberty to file fresh application.

2. The aforesaid submission is accepted and we proceed to pass the following order :

The application is hereby dismissed as withdrawn. However, the applicant is at liberty to challenge the same before the appropriate forum, if she is so advised, in accordance with law.



Sd/-
(NARAYANA,
JUDICIAL MEMBER.

Sd/-
(N.SIVASAILAM),
ADMINISTRATIVE MEMBER.

HBM.

COPY APPLIED ON 03-02-2022
C.F. PRESENTED ON 03-02-2022
COPY ISSUED ON 04-02-2022
COPY DELIVERED ON 07-02-2022

CERTIFIED COPY


Section Officer 7/2/22
Karnataka State Administrative Tribunal
Bengaluru - 09
4/2/2022

1/CA754/2022
03/02/2022
ANNEXURE - N

IN THE KARNATAKA STATE ADMINISTRATIVE TRIBUNAL AT
BANGALORE

DATED : THIS THE 21ST DAY OF JANUARY, 2022.

P R E S E N T

THE HON'BLE Mr. NARAYANA, JUDICIAL MEMBER.

&

THE HON'BLE Mr. N. SIVASAILAM, ADMINISTRATIVE MEMBER.

APPLICATION NUMBER : 5991 OF 2021.

BETWEEN :

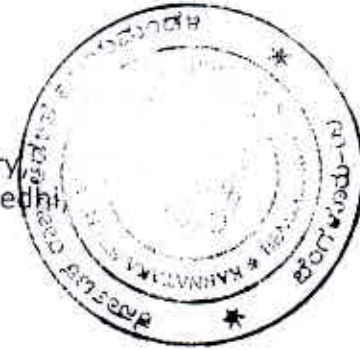
Smt. K. Annapurna, 42 years,
D/o. Late H.N. Krishnamurthy,
Presently working as Assistant (Group-C),
Karnataka Legislative Assembly,
Secretariat, Vidhana Soudha,
Bangalore-560 001.

.. APPLICANT.

(By Sri. H.K.Ravi, Advocate for M/s.Kantharaja & Associates,
Advocate).

AND :

1. The State of Karnataka,
Represented by the Chief Secretary,
Vidhana Soudha, Dr.Ambedkar Veedhi,
Bangalore-560 001.
2. The State of Karnataka,
Represented by its Secretary,
Karnataka Legislative Assembly,
Secretariat, Vidhana Soudha,
Bangalore-560 001.



.. RESPONDENTS.

* * *

This Application is filed under Section 19 of the Administrative Tribunals Act, 1985, with a prayer to direct the first respondent to consider the representation of the applicant dated 7.7.2021 (Annexure-A4) and give promotion

149

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

W.P. No.

of 2022

Appellant/s, Petitioner/s
Plaintiff/s, Complainant/s
Decree-Holder/s/Caveator

Vs.

Defendant / Respondent/s
Accused/Judgement - Debtor/s
Opponents

K. Annapurna

The State of Karnataka &
others

I/We K. Annapurna

the Petitioner No. 1

Nos. RAVI. H.K.
Sri ADVOCATE

In the above matter here by appoint and return

V. Prasanna Kumar V.

To

appear act and plead for me/us in the above matter and to conduct/prosecute and defend the same in all interlocutory or miscellaneous proceedings connected with the same or with any decree or orders passed there in appeals and or other proceedings arising there from and also in proceedings for review of judgement and for leave to appeal to Supreme Court and to obtain return of any documents filed therein, or receive any money which may be payable to me/us

2. I/We hereby authorise him/them on my/our behalf to enter into a compromise in the above matter, to execute any decree/order therein to appeal from any decree/order therein and to appeal to act to plead in such appeal in any preferred by any other party from any decree/other therein.

I/We further agree that if I/We fail to pay the fees agreed upon or to give due instructions at all stages/ he they is/are at liberty to retire from the case and recover all amounts due to him/them and retain all my-our monies till such dues are paid.

Executed by me/us this 16th day of Feb 2022 at Bengaluru

K. Annapurna
(K Annapurna)
Signature/s

Executants/are personally know to me and he/has/they have signed before us

Satisfied as to the identity of executant's Signature/s

(Where the executant/s are illiterate, blind or unacquainted with the language of vakalat)

Certified, that the contents were explained to the executants/s in my presence in Kannada language known to him/them who appear/s perfectly to understand the same and has/have signed in the presence.

Accepted

RAVI. H.K.
ADVOCATE

Address for service

RAVI. H.K.
ADVOCATE

Advocate for V. Prasanna Kumar

KANTHARAJA & ASSOCIATES
ADVOCATES

Place: Bengaluru

201, 2nd Floor, Golden Jubilee Block,
Kubera Sangha Building, Kanakadasa Circle,
1st Main, Gandhinagar, BANGALORE-560009
Mobile: 9984543939

Date: 18-2-2022